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SECTION B - CONTINUATION OF SF 1449 BLOCKS

B.1 CONTRACT ADMINISTRATION DATA

1. Contract Administration: All contract administration matters will be handled by the following individuals:

a. CONTRACTOR:

Name:

Address:

Phone:

Email:

SAM UEI:

b. GOVERNMENT:

Contracting Officer: Fernando Gabe Defillo

Department of Veterans Affairs

Network Contracting Office 8 (NCO 8)

Email: Fernando.defillo@va.gov

Phone: (813) 796-3917

2. CONTRACTOR REMITTANCE ADDRESS: All payments by the Government to the contractor will be made in accordance with:

☒ 52.232-33, Payment by Electronic Funds Transfer—System For Award Management, or

☐ 52.232-36, Payment by Third Party

3. INVOICES: Invoices shall be submitted in arrears:

a. Quarterly ☐

b. Semi-Annually ☐

c. Monthly ☒

4. GOVERNMENT INVOICE ADDRESS: All Invoices from the contractor shall be submitted electronically in accordance with VAAR Clause 852.232-72 Electronic Submission of Payment Requests.

5. ACKNOWLEDGMENT OF AMENDMENTS: The offeror acknowledges receipt of amendments to the Solicitation numbered and dated as follows:

AMENDMENT NO	DATE

6. CONFORMITY TO REGULATIONS: The contractor and his/her operations shall conform to all regulations, Federal, State and Local governing the performance of contracted services.

7. CAUTION: Late submissions, modification, and withdrawals: See Provisions FAR 52.212-1.

8. POST AWARD ORIENTATION: The Contracting Officer will schedule a post award orientation for contract orientation purposes as required by Federal Acquisition Regulation (FAR) Overhaul 42.302, FAR Companion (FC) 42.3, and any local policy established by the Head of Contracting Activity (HCA).

B.2 PRICE SCHEDULE

The contractor shall provide phlebotomists to perform phlebotomy services on site to cover scheduled shortages of staff in accordance with the specifications contained herein to veterans of eight (8) clinics including San Juan VA Caribbean Healthcare System (VACHS), Pathology & Laboratory Medicine Services (P&LMS), the Community Based Outpatient Clinics (CBOC) and Rural clinics by collecting blood specimens and body fluids for laboratory clinical analysis for patients being treated at VACHS locations.

Contract Type: Indefinite Delivery Indefinite Quantity (IDIQ)

Period of Performance: The anticipated contract period of performance is one (1) base year and four (4), one (1) year option periods to be exercised at the sole discretion of the Government based on the continual need for services.

Minimum and Maximum Quantity: The guaranteed minimum amount to be ordered for this procurement is \$2,500.00 – total – inclusive of the base period and all option periods. The contract maximum is \$3,000,000.00 total – inclusive of the base period and all options. If the maximum aggregate amount of \$3,000,000.00 is reached prior to the end date of the final period of performance, no further task order will be issued on the contract.

Task Order Procedures: A task order will be issued at the start of the performance period and orders will be placed by NCO 8 Contracting Officers. The Task Order will contain date of order, order number, line-item number, description, quantity, unit price, performance schedule, accounting and appropriation data and method of payment.

Estimated Quantities: The quantities or dollar threshold listed in the Price Schedule effective for the periods stated are estimated only and are not purchased by the resultant contract. Except as this contract otherwise provides if the VA's requirement does not result in orders in the quantities or dollar amount described that fact shall not constitute the basis for an equitable price adjustment.

Pricing: Price schedule for Line-Item Number (LIN) for the base year and each option year includes the following: estimated quantity, unit, proposed unit price, proposed total annual price for each LIN and Sub-Lin, and the estimated grand total.

Pricing Instructions: The offeror is instructed to edit the Unit Cost and Total Annual Cost correspond with the cost for the line-item number (LIN). The contractor shall propose required key personnel (Full-Time Equivalent) to be credentialed and be available for scheduling to meet the requirements of the contract. The contractor is instructed to provide a list of Key Personnel on the table in section 6 of the Performance Work Statement (PWS).

Period of Performance: BASE: 07-01-2026 to 06-30-2027

<u>LIN No.</u>	<u>SUB-LIN</u>	<u>Description</u>	<u>Estimated Quantity</u>	<u>Unit</u>	<u>Unit Price</u>	<u>Estimated Total Annual Price</u>
0001	None	Provide Phlebotomist Services 5 FTE	10,400	Hour	DO NOT PRICE	DO NOT PRICE
Key Personnel						
NONE	0001AA	Phlebotomist (Regular Time including Holidays)	8,320	Hour		
NONE	0001AB	Phlebotomist (Weekend Pay)	2,080	Hour		
CLIN 0001 TOTAL FOR BASE TERM					\$	

Period of Performance: Option Year I: 07-01-2027 to 06-30-2028

<u>LIN No.</u>	<u>SUB-LIN</u>	<u>Description</u>	<u>Estimated Quantity</u>	<u>Unit</u>	<u>Unit Price</u>	<u>Estimated Total Annual Price</u>
1001	None	Provide Phlebotomist Services 8 FTE	16,640	Hour	DO NOT PRICE	DO NOT PRICE
Key Personnel						
NONE	1001AA	Phlebotomist (Regular Time including Holidays)	13,312	Hour		
NONE	1001AB	Phlebotomist (Weekend Pay)	3,328	Hour		
CLIN 1001 TOTAL FOR OPTION YEAR I					\$	

Period of Performance: Option Year II: 07-01-2028 to 06-30-2029

<u>LIN No.</u>	<u>SUB-LIN</u>	<u>Description</u>	<u>Estimated Quantity</u>	<u>Unit</u>	<u>Unit Price</u>	<u>Estimated Total Annual Price</u>
2001	None	Provide Phlebotomist Services 8 FTE	16,640	Hour	DO NOT PRICE	DO NOT PRICE
Key Personnel						
NONE	2001AA	Phlebotomist (Regular Time including Holidays))	13,312	Hour		
NONE	2001AB	Phlebotomist (Weekend Pay)	3,328	Hour		
CLIN 2001 TOTAL FOR OPTION YEAR II					\$	

Period of Performance: Option Year III: 07-01-2029 to 06-30-2030

<u>LIN No.</u>	<u>SUB-LIN</u>	<u>Description</u>	<u>Estimated Quantity</u>	<u>Unit</u>	<u>Unit Price</u>	<u>Estimated Total Annual Price</u>
3001	None	Provide Phlebotomist Services 8 FTE	16,640	Hour	DO NOT PRICE	DO NOT PRICE
Key Personnel						
NONE	3001AA	Phlebotomist (Regular Time including Holidays))	13,312	Hour		
NONE	3001AB	Phlebotomist (Weekend Pay)	3,328	Hour		
CLIN 3001 TOTAL FOR OPTION YEAR III					\$	

Period of Performance: Option Year IV: 07-01-2030 to 06-30-2031

<u>LIN No.</u>	<u>SUB-LIN</u>	<u>Description</u>	<u>Estimated Quantity</u>	<u>Unit</u>	<u>Unit Price</u>	<u>Estimated Total Annual Price</u>
4001	None	Provide Phlebotomist Services 8 FTE	16,640	Hour	DO NOT PRICE	DO NOT PRICE
Key Personnel						
NONE	4001AA	Phlebotomist (Regular Time including Holidays)	13,312	Hour		
NONE	4001AB	Phlebotomist (Weekend Pay)	3,328	Hour		
CLIN 4001 TOTAL FOR OPTION YEAR IV					\$	

TOTAL FOR BASE AND ALL OPTION PERIODS: _____

B.3 PERFORMANCE WORK STATEMENT for PHLEBOTOMY SERVICES

1. GENERAL:

1.1 Services Provided: The contractor shall provide phlebotomists to perform phlebotomy services on site to cover scheduled shortages of staff in accordance with the specifications contained herein to veterans of eight (8) clinics including VACHS, Pathology & Laboratory Medicine Services (P&LMS), the Community Based Outpatient Clinics (CBOC) and Rural clinics by collecting blood specimens and body fluids for laboratory clinical analysis for patients being treated at VACHS locations. The number of phlebotomists needed on one day shall be a minimum of five (5) and maximum of 8 (eight). The contractor shall supply all management, supervision, and labor necessary to provide personnel for phlebotomy services. The contract personnel will have access to and the use of all required patient care equipment, supplies, and computer access (CPRS, VISTA, ETC.) for performing services required by this contract. The phlebotomists shall be highly reliable in providing services and support that meet or exceed customer requirements and expectations. Contractor phlebotomists shall have direct work experience working in a healthcare setting. Contractors shall be working with:

- Outpatient setting
- Geriatric patient population
- Various behavioral groups who may be disoriented, disabled, or reduced physical function.
- Clinically complex group of chronic/mentally ill patients.

Phlebotomist(s) shall be present at a VA facility and shall be performing the required services for payment. The Contractor shall be paid for actual performance, not for standing by or being on-call. Payment for any leave, including sick leave or vacation time, and holiday pay is the responsibility of the Contractor. The VA reserves the right to refuse to accept any phlebotomist(s) who do not meet the requirements set forth, who fails to perform in accordance with the task order requirements, or who fails to adapt to the VACHS work environment.

1.2 Place of Performance: Contractor shall have the ability to provide personnel to furnish services at the following seven (7) outpatient clinics and one (1) medical center:

- San Juan VACHS:10 Calle Casia, San Juan, P.R 00926.
- Ponce OPC: #1802 Calle Navarra Ponce, P.R. 00716-2001.
- Mayaguez OPC: Maya State Road PR 2 K.M.149.9 AVE. Algarrobo #175 Mayaguez P.R. 00681-1507.
- Arecibo VA Clinic: Hato Abajo, PR 2 INT. 660-K.M 78 Arecibo, P.R.00616.
- Ceiba VA Clinic:312 AVE. Lauro Piñeiro Ceiba, PR 00735.

- Comerio VA Clinic: Jose de Diego Street, Suite 15 Comerio P.R. 00782
- Guayama VA Clinic: FISA Building, 1st Floor, Paseo de Pueblo K.M. 0.3 Lote 6 Guayama, P.R. 00784.
- Utuado Clinic: 11 1 Calle Isaac Gonzalez Martinez Esq. Ledesma Utuado, P.R. 00641.

1.3 Authority: Title 38 USC 8153, Health Care Resources (HCR) sharing Authority, VA Directive 1663, and FAR Overhaul Part 12 – Acquisition of Commercial Products and Commercial Services.

1.4 Policy/Handbooks: The contractor shall be subject to the following policies, including any subsequent updates during the period of performance:

- 1.4.1 VA Directive 1663: Health Care Resources Contracting – Buying
[dvagov.sharepoint.com/sites/VHAProcurement/PLOMSO\(OLD\)/CRC/MSO/Publications/Forms/AllItems.aspx?id=%2Fsites%2FVHAProcurement%2FPLOMSO%28OLD%29%2FCRC%2FMSO Publications%2FVA Directive 1663 051018 certified%2Epdf&parent=%2Fsites%2FVHAProcurement%2FPLOMSO%28OLD%29%2FCRC%2FMSO Publications%2FVA Directive 1663](https://dvagov.sharepoint.com/sites/VHAProcurement/PLOMSO(OLD)/CRC/MSO/Publications/Forms/AllItems.aspx?id=%2Fsites%2FVHAProcurement%2FPLOMSO%28OLD%29%2FCRC%2FMSO%2FPublications%2FVA%2FDirective%2F1663%2F051018%2Fcertified%2Fpdf&parent=%2Fsites%2FVHAProcurement%2FPLOMSO%28OLD%29%2FCRC%2FMSO%2FPublications%2FVA%2FDirective%2F1663)
- 1.4.2 VHA Directive 2006-041 “Veterans’ Health Care Service Standards” (expired but still in effect pending revision)
dvagov.sharepoint.com/sites/VHAKAN/SiteDirectory/GEC/Transition/Policy and Procedures/Forms/AllItems.aspx?id=%2Fsites%2FVHAKAN%2FSiteDirectory%2FGEC%2FTransition%2FPolicy and Procedures%2FVeterans Health Care Service Standards%2Epdf&parent=%2Fsites%2FVHAKAN%2FSiteDirectory%2FGEC%2FTransition%2FPolicy and Procedures
- 1.4.3 VHA Handbook 1907.01 Health Information Management and Health Records dvagov.sharepoint.com/sites/vhahealth-information-management/HIM Handbook and Guides/Forms/AllItems.aspx?id=%2Fsites%2Fvhahealth-information-management%2FHIM Handbook and Guides%2FVHA Directive 1907%2E01 VHA Health Information Management and Health Records April 5%2C 2021%2Epdf&parent=%2Fsites%2Fvhahealth-information-management%2FHIM Handbook and Guides
- 1.4.4 Privacy Act of 1974 (5 U.S.C. 552a) as amended
[http://www.justice.gov/oip/foia_updates/Vol XVII 4/page2.htm](http://www.justice.gov/oip/foia_updates/Vol_XVII_4/page2.htm)
- 1.4.5 VHA Directive 1003, VHA Veteran Patient Experience
https://www.va.gov/VHAPUBLICATIONS/ViewPublication.asp?pub_ID=8789

- 1.4.6 VHA Directive 1192, Seasonal Influenza Prevention Program
https://www.publichealth.va.gov/docs/flu/VHA_Directive_1192_Sep2017.pdf
- 1.4.7 VHA Directive 1220: Facility Procedure Complexity Designation Requirements to Perform Invasive Procedures in any Clinical Setting
https://www.va.gov/vhapublications/ViewPublication.asp?pub_ID=8365
- 1.4.8 VHA Directive 1230(3) Outpatient Scheduling Processes and Procedures
dvagov.sharepoint.com/sites/VHAMIW/div/cos/climet/Access_Consult_Directives/Forms/AllItems.aspx?id=%2Fsites%2FVHAMIW%2Fdiv%2Fcos%2Fclimet%2FAccess_Consult_Directives%2FVHA_Directive_1230%285%29_D_Outpatient_Scheduling_Processes_and_Procedures%2Epdf&parent=%2Fsites%2FVHAMIW%2Fdiv%2Fcos%2Fclimet%2FAccess_Consult_Directives
- 1.4.9 VA Handbook 6500.6 “Contract Security”
https://www.va.gov/vapubs/viewPublication.asp?Pub_ID=471&FTYPE=2
- 1.4.10 VA Handbook 5011/34: Hours of Duty and Leave
https://www.va.gov/vapubs/viewPublication.asp?Pub_ID=1102&FTYPE=2
- 1.4.11 The professional standards of the Joint Commission (TJC)
http://www.jointcommission.org/standards_information/hap_requirements.aspx
- 1.4.12 VA Handbook 0730, “Security and Law Enforcement”
https://www.va.gov/vapubs/viewPublication.asp?Pub_ID=757&FTYPE=2
- 1.5 **Definitions/Acronyms:** Terms used in this task order shall be interpreted as follows unless the context expressly requires a different construction and/or interpretation. In case of a conflict, the language in this section shall govern.
 - 1.5.1 BLS: Basic Life Support
 - 1.5.2 BAA: Business Associate Agreement
 - 1.5.3 CDC: Centers for Disease Control and Prevention
 - 1.5.4 CDR: Contract Discrepancy Report
 - 1.5.5 Contracting Officer (CO): The person executing this task order on behalf of the Government with the authority to enter into and administer task orders and make related determinations and findings.
 - 1.5.6 C.F.R.: Code of Federal Regulations – is the official annual codification of general and permanent rules published in the Federal Register by U.S. federal agencies
 - 1.5.7 Contracting Officer’s Representative (COR): A person appointed by the CO to take necessary action to ensure the Contractor performs in accordance with and adheres to the specifications contained in the task order and to protect the interest of the Government. The COR will report to the CO promptly any indication of non-compliance in order that appropriate action be taken.
 - 1.5.8 COS: Chief of Staff
 - 1.5.9 CPARS: Contractor Performance Assessment Reporting System
 - 1.5.10 CPRS: Computerized Patient Recordkeeping System – electronic health record system used by the VA.
 - 1.5.11 Credentialing: Credentialing is the systematic process of screening and evaluating qualifications and other credentials, including licensure, required education, relevant training and experience and current competence and health status.
 - 1.5.12 DEA: Drug Enforcement Agency

- 1.5.13 FAR: Federal Acquisition Regulation
- 1.5.14 FAPIIS: Federal Performance Awardee and Integrity Information System
- 1.5.15 FOIA: Freedom of Information Act
- 1.5.16 FSC: Financial Services Center located in Austin, Texas
- 1.5.17 Full Time Equivalent (FTE): VA's definition for full time working the equivalent of 80 hours every two (2) weeks, 2080 hours per year. In calculating FTE, any hours not worked on national holidays shall not be included.
- 1.5.18 GAO: Government Accountability Office
- 1.5.19 HHS: Department of Health and Human Services
- 1.5.20 HICPAC: Healthcare Infection Control Practices Advisory Committee
- 1.5.21 HIPAA: Health Insurance Portability and Accountability Act
- 1.5.22 ICC: Infection Control Committee
- 1.5.23 ID: Identity document
- 1.5.24 ISO: Information Security Officer
- 1.5.25 Key Personnel: The individual specified in this contract who are essential to work performance.
- 1.5.26 Medical Emergency: a sudden onset of a medical condition manifesting itself by acute symptoms of sufficient severity that the absence of immediate medical attention could reasonably result in: Permanently placing a patient's health in jeopardy, causing other serious medical consequences, causing impairments to body functions, or causing serious or permanent dysfunction of any body-organ or part.
- 1.5.27 MTS: Med Training Program
- 1.5.28 NIST: National Institute of Standards and Technology
- 1.5.29 Non-Contract Provider: Any person, organization, agency, or entity that is not directly or indirectly employed by the Contractor or any of its subcontractors.
- 1.5.30 OIG: Office of Inspector General
- 1.5.31 OPA: Office of Pathology and Laboratory Medicine Service
- 1.5.32 OSHA: Occupational Safety and Health Administration
- 1.5.33 PASS: Pill the pin, Aim at the base of the fire, Squeeze the handle, and Sweep side-to-side. It's a four-step method to operate a fire extinguisher during an emergency.
- 1.5.34 PIV: Personal Identity Verification
- 1.5.35 POP: Period of Performance
- 1.5.36 PPD: Purified Protein Derivative
- 1.5.37 PPIRS: Past Performance Information Retrieval System
- 1.5.38 PWS: Performance Work Statement
- 1.5.39 QA/QI: Quality Assurance/Quality Improvement
- 1.5.40 QASP: Quality Assurance Surveillance Plan
- 1.5.41 RACE: Rescue, Alarm, Contain/Confine, and Extinguish/Evacuate – representing the standard emergency procedure for responding to a fire
- 1.5.42 RFQ: Request for Quote
- 1.5.43 STAT: signifies that a test, medication, or action must be performed immediately or as a one-off. It indicates the highest level of urgency in a clinical setting.
- 1.5.44 TDAP: Tetanus, Diphtheria, and Acellular Pertussis Vaccine
- 1.5.45 TJC: The Joint Commission

- 1.5.46 TMS: Talent Management System
- 1.5.47 U.S.C: United States Code
- 1.5.48 VA: Department of Veteran Affairs
- 1.5.49 VAMC: Veterans Affairs Medical Center
- 1.5.50 VAAR: Veterans Affairs Acquisition Regulation
- 1.5.51 Veterans Health Administration (VHA): The central office for administration of the VA medical centers throughout the United States. The VHA is located in Washington D.C.
- 1.5.52 VETPRO: is VHA's mandatory credentialing software platform to document the credentialing of VHA health care providers. This system facilitates completion of a uniform, accurate, and complete credentials file.
- 1.5.53 Veterans Integrated Services Network (VISN): The regional oversight for the VA medical centers in Florida and Puerto Rico.
- 1.5.54 VISTA (Veterans Integrated Systems Technology Architecture): A PC based system that will capture and store clinical imagery, scanned documents and other non-textual data files and integrates them into patient's medical records and with the hospital information system.
- 1.5.55 VA Caribbean Healthcare System (VACHS): Unless identified with the name of a different VA medical Center, for purposes of this task order, this term shall mean the San Juan VA Medical Center.

2. QUALIFICATIONS:

Staff are required to complete VETPRO process for credentials verification.

2.1 Staff/Facility:

- 2.1.1 License: Phlebotomist(s) assigned by the Contractor to perform the services covered by this task order shall have six (6) months of specialized experience performing phlebotomy procedures.
- 2.1.2 Technical Proficiency: Phlebotomist(s) shall be fully trained and completely competent to perform the required work. All contract phlebotomist(s) shall be technically proficient in the skills necessary to fulfill the government's requirements, including the ability to speak, understand, read, and write English fluently, in addition, read and write in Spanish fluently. Contractor shall provide documents upon request of the CO/COR to verify current and ongoing competency, skills, certification and/or licensure related to the provision of care and/or services performed. Contractor shall provide verifiable evidence of all educational and training. In addition, the phlebotomist(s) shall have the following skills:
 - Familiar in dealing with patient population, including elderly and difficult patients.
 - Shall have tact and personality conducive to interacting with ill, disoriented, sometimes difficult outpatient population.
 - Documentation and ordering of test orders shall be done electronically on the Veterans Health Information Systems and

Technology Architecture (VistA) computer system and CPRS. As a part of the orientation process, phlebotomist(s) shall be required to request and obtain an access code to the VistA and Computerizes Patient Recordkeeping System (CPRS) computer system. At that time, phlebotomist(s) shall have access to training.

- 2.1.3 Training (BLS, CPRS and VA Mandatory): Phlebotomist(s) shall meet all VA requirements and mandatory course requirements defined herein; all training must be completed by the phlebotomist(s) as required by the VA to include New Employee Orientation, Privacy and HIPAA Focused Training, and VA Privacy and Information Security Awareness and Rules of Behavior.

Frequency of Training:

Training	Frequency (once a year, etc.)	Annual Hours
VA Privacy and Information Security Awareness and Rules of Behavior	Annual	1 hour
VA Privacy and HIPAA Focused Training	Annual	1 Hour
New Employee Orientation	For New Employees	To be determined
Any additional training as deemed required	Annual	To be determined

- 2.1.4 Standard Personnel Testing (PPD, etc.): Contractor shall provide proof of the following tests for all phlebotomist(s) within five (5) calendar days after task order award and prior to the first duty shift to the COR. Tests shall be current within the past year.

2.1.4.1 Tuberculosis Testing: Contractor shall provide proof of a negative reaction to PPD testing for all phlebotomist(s). A negative chest radiographic report for active tuberculosis shall be provided in cases of positive PPD results. The PPD test shall be repeated annually.

2.1.4.2 Rubella Testing: Contractor shall provide proof of immunization for all phlebotomist(s) for measles, mumps, rubella, or a rubella titer of 1.8 or greater. If the titer is less than 1.8, a rubella immunization shall be administered with follow-up documentation to the COR.

- 2.1.4.3 OSHA REGULATION CONCERNING OCCUPATIONAL EXPOSURE TO BLOODBORNE PATHOGENS: Contractor shall provide generic self-study training for all phlebotomist(s); provide their own Hepatitis B vaccination series at no cost to the VA if they elect to receive it; maintain an exposure determination and control plan; maintain required records; and ensure that proper follow-up evaluation is provided following an exposure incident. The VACHS will notify the Contractor of any significant communicable disease exposures as appropriate. Contractor shall adhere to current CDC/HICPAC Guideline for Infection Control in health care personnel (as published in American Journal for Infection Control- AJIC 1998; 26:289-354 [Infection Control in Healthcare Personnel: Epidemiology and Control of Selected Infections | Infection Control | CDC](#) for disease control. Contractor shall provide follow up documentation of clearance to return to the workplace prior to their return.
- 2.1.4.4 Varicella: Contractors shall provide proof of immunity for all Contractor Phlebotomist {This is applicable to all health care workers}.
- 2.1.4.5 Acellular Pertussis: Contractors shall provide proof of 1 dose of TDAP vaccination for all Contractor Phlebotomist {This is applicable to all health care workers}.
- 2.1.4.6 Influenza: Contractors shall provide proof that all Contractor Phlebotomist have received the annual Influenza vaccine unless it is contraindicated. If the Contractor Phlebotomist has a medical contraindication to the vaccine, they shall be required to wear a mask during the Influenza season. {This is applicable to all health care workers}.
- 2.1.4.7 The VACHS will notify the Contractor of any significant communicable disease exposures as appropriate. Contractor shall adhere to current CDC/HICPAC Guideline for Infection Control in health care personnel (as published in American Journal for Infection Control- AJIC 1998; 26:289-354 [Infection Control in Healthcare Personnel: Epidemiology and Control of Selected Infections | Infection Control | CDC](#) for disease control. Contractor shall provide follow up documentation of clearance to return to the workplace prior to their return.
- 2.1.4.8 The Contractor shall provide the COR with certification that phlebotomist(s) have completed the medical evaluation required above, minimum of five (5) calendar days prior to performance of contract services. This certification shall state the date the examination was completed, the doctor's name who performed the examination, a statement concerning the physical health of the individual and the following statement: [Name of

phlebotomist], is suffering from NO contagious diseases to include but not limited to: Tuberculosis, Hepatitis and Venereal Disease.

2.1.4.9 The Government may take nose and throat cultures from phlebotomist(s) when required by Government Infection Control Committees (ICC).

2.1.4.10 When a phlebotomist(s) has been found medically unfit for providing services required under this contract, they shall be required to discontinue working immediately. Phlebotomist(s) shall not return to work until given clearance by the appropriate physician.

2.1.4.11 The Contractor shall provide the COR with all the information necessary to ensure that Government records are maintained correctly and in compliance with the Joint Commission (TJC), OSHA and the Center for Disease Control (CDC) health records requirements, for each individual phlebotomist(s).

2.1.5 DEA (as required) - Contractor shall provide copy of current Drug Enforcement Administration (DEA) certificate.

2.1.6 Conflict of Interest: The Contractor and all phlebotomist(s) are responsible for identifying and communicating to the CO and COR conflicts of interest at the time of quote and during the entirety of task order performance. At the time of quote, the Contractor shall provide a statement which describes, in a concise manner, all relevant facts concerning any past, present, or current planned interest (financial, contractual, organizational, or otherwise) or actual or potential organizational conflicts of interest relating to the services to be provided. The Contractor shall also provide statements containing the same information for any identified consultants or subcontractors who shall provide services. The Contractor must also provide relevant facts that show how it's organizational and/or management system or other actions shall avoid or mitigate any actual or potential organizational conflicts of interest. These statements shall be in response to the VAAR provision 852.209-70 Organizational Conflicts of Interest and fully outlined in response to the subject attachment in Section D of the solicitation document.

2.1.7 Citizenship related Requirements:

2.1.7.1 The Contractor certifies that the Contractor shall comply with any and all legal provisions contained in the Immigration and Nationality Act of 1952, As Amended; its related laws and regulations that are enforced by Homeland Security, Immigration and Customs Enforcement and the U.S Department of Labor as these may relate to non-immigrant foreign nationals working under

contract or subcontract for the Contractor while providing services to Department of Veterans Affairs patient referrals;

2.1.7.2 While performing services for the Department of Veterans Affairs, the Contractor shall not knowingly employ, contract, or subcontract with an illegal alien; foreign national non-immigrant who is in violation their status, as a result of their failure to maintain or comply with the terms and conditions of their admission into the United States. Additionally, the Contractor is required to comply with all "E-Verify" requirements consistent with "Executive Order 12989" and any related pertinent Amendments, as well as applicable Federal Acquisition Regulations.

2.1.7.3 If the Contractor fails to comply with any requirements outlined in the preceding paragraphs or its Agency regulations, the Department of Veterans Affairs may, at its discretion, require that the foreign national who failed to maintain their legal status in the United States or otherwise failed to comply with the requirements of the laws administered by Homeland Security, Immigration and Customs Enforcement and the U.S Department of Labor, shall be prohibited from working at the Contractor's place of business that services Department of Veterans Affairs patient referrals; or other place where the Contractor provides services to veterans who have been referred by the Department of Veterans Affairs; and shall form the basis for termination of this task order for breach.

2.1.4.12 Interest (financial, contractual, organizational, or otherwise) or actual or potential organizational conflicts of interest relating to the services to be provided. The Contractor shall also provide statements containing the same information for any identified consultants or subcontractors who work until given clearance by the appropriate physician.

2.1.4.13 The Contractor shall provide the COR with all the information necessary to ensure that Government records are maintained correctly and in compliance with the Joint Commission (TJC), OSHA and the Center for Disease Control (CDC) health records requirements, for each individual phlebotomist(s).

3. NON-PERSONAL HEATHCARE SERVICES:

The parties agree that the Contractor and all phlebotomist(s) shall not be considered VA employees for any purpose.

4. INHERENT GOVERNMENT FUNCTIONS:

Contractor and phlebotomist(s) shall not perform inherently governmental functions. This includes, but is not limited to, determination of agency policy, determination of Federal program priorities for budget requests, direction and

control of government employees (outside a clinical context), selection or non-selection of individuals for Federal Government employment including the interviewing of individuals for employment, approval of position descriptions and performance standards for Federal employees, approving any contractual documents, approval of Federal licensing actions and inspections, and/or determination of budget policy, guidance, and strategy.

4.1 No Employee Status: The Contractor shall be responsible for protecting phlebotomist(s) furnishing services. To carry out this responsibility, the Contractor shall provide or certify that the following is provided for all their staff providing services under the resultant task order:

Workers' compensation
Professional liability insurance
Health examinations
Income tax withholding, and
Social security payments

5. TORT LIABILITY:

The Federal Tort Claims Act does not cover Contractor or phlebotomist(s). When a Contractor or phlebotomist(s) has been identified as a service provider in a tort claim, the Contractor shall be responsible for notifying their legal counsel and/or insurance carrier. Any settlement or judgment arising from a Contractor's (or phlebotomist(s)) action or non-action shall be the responsibility of the Contractor and/or insurance carrier.

6. KEY PERSONNEL:

6.1 The VA Full Time Equivalency (FTE) for the base year services required is 20,800 hours = 10.0 VA FTE. FTE is defined by VA as a minimum of 80 hours every two (2) weeks and includes holidays.

6.2 VA Hours of Operation/Scheduling: The number of Phlebotomists required to be on site on a daily basis is a minimum of five (5) and maximum of eight (8) as defined in paragraph Hours of Operation in this section.

Projected Key Personnel: (you can add as an addendum)

NAME	FTE/Hours

7. EMERGENCY SUBSTITUTIONS:

During the first ninety (90) calendar days of performance, the Contractor shall make NO substitutions of key personnel unless the substitution is necessitated by illness, death, or termination of employment. The Contractor shall notify the CO and COR, in writing, within 15 calendar days after the occurrence of any of these events and provide the information required below. After 90 days, the Contractor shall submit the information required below to the CO and COR at least 15 calendar days prior to making any permanent substitutions.

- 7.1 The Contractor shall provide a detailed explanation of the circumstances necessitating the proposed substitutions, complete resumes for the proposed substitutes, and any additional information requested by the CO and COR. Proposed substitutes shall have comparable qualifications to those of the persons being replaced. The CO will notify the Contractor within 15 calendar days after receipt of all required information of the decision on the proposed substitutes. The task order will be modified to reflect any approved changes of key personnel.
- 7.2 For temporary substitutions where the key person shall not be reporting to work for three (3) consecutive workdays or more, the Contractor shall provide a qualified replacement for the key person. The substitute shall have comparable qualifications to the key person. Any period exceeding two (2) weeks will require the procedure as stated above.
- 7.3 The Government reserves the right to refuse acceptance of any Phlebotomist(s) at any time after performance begins, if personal or professional conduct jeopardizes patient care or interferes with the regular and ordinary operation of the facility. Breaches of conduct include intoxication or debilitation resulting from drug use, theft, patient abuse, dereliction, or negligence in performing directed tasks, or other conduct resulting in formal complaints by patient or other staff members to designated Government representatives. Standards for conduct shall mirror those prescribed by current federal personnel regulations. Should the VA Chief of Staff or designee show documented clinical problems or continual unprofessional behavior/actions with any phlebotomist(s), s/he may request, without cause, immediate replacement of said phlebotomist(s).
- 7.4 The CO and COR will deal with issues raised concerning phlebotomist(s) conduct. The final arbiter on questions of acceptability is the CO.
- 7.5 For non-emergency substitutions of personnel see VAAR 852.237-75 KEY PERSONNEL

8. CONTINGENCY PLAN:

Because continuity of care is an essential part of VACHS medical services, The Contractor shall have a contingency plan in place to be utilized if the phlebotomist(s) leaves Contractor's employment or is unable to continue

performance in accordance with the terms and conditions of the resulting task order.

9. VA HOURS OF OPERATION/SCHEDULING:

9.1 VA Business Hours: Monday–Friday, between 5:30am-4:00pm and Saturday 6:00am-12:00pm.

9.2 Work Schedule: Monday- Friday, between 5:30am-4:00pm and Saturday 6:00am-12:00pm (may include Weekends and Holidays as needed).

9.3 Services shall be purchased on four (4) hour and eight (8) hour blocks. These services shall be purchased with two (2) weeks' notice prior to the day needed whenever possible for personnel coverage. The four (4) hour and eight (8) hour blocks shall be during the hours of operation listed above.

9.4 Off-Hours Coverage: No on-call is required for the phlebotomist(s).

9.5 Federal Holidays: The following holidays are observed by the Department of Veterans Affairs:

- New Year's Day
- President's Day
- Martin Luther King's Birthday
- Memorial Day
- Independence Day
- Labor Day
- Columbus Day
- Veterans Day
- Thanksgiving
- Christmas
- Any day specifically declared by the President of the United States to be a national holiday.

9.6 Cancellations: The contractor must provide an equivalent substitute in a timely manner (within 2 hours prior to the start of the scheduled tour of duty) if the phlebotomist(s) scheduled cannot work.

9.7 Unless a state of emergency has been declared, the Contractor shall be responsible for providing services.

10. CONTRACTOR RESPONSIBILITIES:

10.1 Clinical Personnel Required: The Contractor shall provide phlebotomist(s) who are competent, qualified per this performance work statement and adequately trained to perform assigned duties.

10.2.1. The Medical Technicians (phlebotomist) shall be responsible for accurately identifying patients, obtaining the proper specimens,

recognizing, and immediately reporting adverse patient reaction to venipuncture procedures to appropriate VA personnel.

10.2.2. Phlebotomist(s) shall be responsible for processing laboratory specimens as well as specimen pickup, delivery of blood and blood products and computer related functions such as accessioning specimens. Phlebotomist(s) shall refer problems/inquiries to VA team leaders or supervisors.

10.2.3. Phlebotomist(s) shall complete all Medical Center's required mandatory education and confirm all laboratory policies and procedures directly related to their job duties.

10.2.4. Phlebotomist(s) shall follow hospital and laboratory policies and procedures, including safety and computer policies.

11. STANDARDS OF CARE:

The phlebotomist(s) shall cover the range of phlebotomy services as would be provided in a state-of-the-art civilian medical treatment facility and the standard of care shall be of a quality, meeting or exceedingly currently recognized TJC, VA and national standards as established by:

11.2. VA Standards: VHA Directive 2006-041 "Veterans' Health Care Service Standards" (expired but still in effect pending revision)
[dvagov.sharepoint.com/sites/VHAKAN/SiteDirectory/GEC/Transition/Policy and Procedures/Forms/AllItems.aspx?id=%2Fsites%2FVHAKAN%2FSiteDirectory%2FGEC%2FTransition%2FPolicy and Procedures%2FVeterans Health Care Service Standards%20pdf&parent=%2Fsites%2FVHAKAN%2FSiteDirectory%2FGEC%2FTransition%2FPolicy and Procedures](http://dvagov.sharepoint.com/sites/VHAKAN/SiteDirectory/GEC/Transition/Policy%20and%20Procedures/Forms/AllItems.aspx?id=%2Fsites%2FVHAKAN%2FSiteDirectory%2FGEC%2FTransition%2FPolicy%20and%20Procedures%2FVeterans%20Health%20Care%20Service%20Standards%20pdf&parent=%2Fsites%2FVHAKAN%2FSiteDirectory%2FGEC%2FTransition%2FPolicy%20and%20Procedures)

11.3. The professional standards of the Joint Commission (TJC)
http://www.jointcommission.org/standards_information/standards.aspx

11.4. The standards of the American Hospital Association (AHA)
<http://www.hpoe.org/resources?show=100&type=8> and; The requirements contained in this PWS.

12. MEDICAL RECORDS:

12.1. Authorities: Phlebotomist(s) providing healthcare services to VA patients shall be considered as part of the Department Healthcare Activity and shall comply with the U.S.C.551a (Privacy Act), 38 U.S.C. 5701 (Confidentiality of claimants records), 5U.S.C. 552 (FOIA), 38 U.S.C. 5705 (Confidentiality of Medical Quality Assurance Records) 38 U.S.C. 7332 (Confidentiality of certain medical records), Title 5 U.S.C. § 522a (Records Maintained on Individuals) as well as 45 C.F.R. Parts 160, 162, and 164 (HIPAA).

- 12.2. HIPAA: This task order and its requirements meet exception in 45 CFR 164.502(e), and do not require a BAA in order for Covered Entity to disclose Protected Health Information to: a health care provider for treatment. Based on this exception, a BAA is not required for this task order. Treatment and administrative patient records generated by this task order or provided to the Contractors by the VA are covered by the VA system of records entitled 'Patient Medical Records-VA' (24VA19). Contractor generated VA Patient records are the property of the VA and shall not be accessed, released, transferred, or destroyed except in accordance with applicable laws and regulations. Contractor shall ensure that all records pertaining to medical care and services are available for immediate transmission when requested by the VA. Records identified for review, audit, or evaluation by VA representatives and authorized federal and state officials, shall be accessed on-site during normal business hours or mailed by the Contractor at his expense. Contractor shall deliver all final patient records, correspondence, and notes to the VA within twenty-one (21) calendar days after the task order expiration date.
- 12.3. Disclosure: Phlebotomist(s) shall have access to patient medical records: however, Contractor shall obtain permission from the VA before disclosing any patient information. Subject to applicable federal confidentiality or privacy laws, the Contractor, or their designated representatives, and designated representatives of federal regulatory agencies having jurisdiction over Contractor, shall have access to VA 's records, at VA's place of business on request during normal business hours, to inspect and review and make copies of such records. The VA will provide the Contractor with a copy of VHA Handbook 1907.1, Health Information management and Health Records and VHA Handbook 1605.1, Privacy and Release of Information. The penalties and liabilities for the unauthorized disclosure of VA patient information mandated by the statutes and regulations mentioned above, apply to the Contractor.
- 12.4. Professional Standards for Documenting Care: Care shall be appropriately documented in medical records in accordance with standard commercial practice and guidelines established by VHA Handbook 1907.01 Health Information Management and Health Records: [dvagov.sharepoint.com/sites/vhahealth-information-management/HIMHandbookandGuides/Forms/AllItems.aspx?id=%2Fsites%2Fvhahealth-information-management%2FHIM Handbook and Guides%2FVHA Directive 1907%2E01 VHA Health Information Management and Health Records April 5%2C 2021%2Epdf&parent=%2Fsites%2Fvhahealth-information-management%2FHIM Handbook and Guides](https://dvagov.sharepoint.com/sites/vhahealth-information-management/HIMHandbookandGuides/Forms/AllItems.aspx?id=%2Fsites%2Fvhahealth-information-management%2FHIM%20Handbook%20and%20Guides%2FVHA%20Directive%201907%2E01%20VHA%20Health%20Information%20Management%20and%20Health%20Records%20April%205%2C%202021%2Epdf&parent=%2Fsites%2Fvhahealth-information-management%2FHIM%20Handbook%20and%20Guides) and all guidelines provided by the VAMC.
- 12.5. Release of Information: The VA shall maintain control of releasing any patient medical information and will follow policies and standards as defined, but not limited to Privacy Act requirements. In the case of the VA authorizing the Contractor to release patient information, the Contractor in compliance with VA regulations, and at his/her own expense, shall use VA

Form 3288, Request for and Consent to Release of Information from Individual's Records, to process "Release of Information Requests." In addition, the Contractor shall be responsible for locating and forwarding records not kept at their facility. The VA's Release of Information Section shall provide the Contractor with assistance in completing forms. Additionally, the Contractor shall use VA Form 10-5345, Request for and Authorization to Release Medical Records or Health Information, when releasing records protected by 38 U.S.C. 7332. Treatment and release records shall include the patient's consent form. Completed Release of Information requests will be forwarded to the VA Privacy Officer at the following address: alejandro.ortiz-mendez@va.gov or eryka.torres-miranda@va.gov.

13. **DIRECT PATIENT CARE:**

90% of the time involved in direct patient care and handling Specimen Processing. For additional details please refer to Quality Assurance Surveillance Plan (QASP).

- 13.1. Accuracy
- 13.2. Productivity
- 13.3. Customer Service
- 13.4. Safety

14. **ADMINISTRATIVE:**

10% of the time involved in the verify and accessioning patient order. For additional details please refer to Quality Assurance Surveillance Plan (QASP).

- 14.1. Staff Meetings
- 14.2. Education and Training
- 14.3. Quality Assurance/Quality Improvement Documentation
- 14.4. Patient Safety Compliance and Reporting
- 14.5. CPRS and VISTA

15. **PERFORMANCE STANDARDS, QUALITY ASSURANCE (QA) and QUALITY IMPROVEMENT (QI):**

- 15.1. Quality Management/Quality Assurance Surveillance:
Phlebotomist(s) shall be subject to Quality Management measures, such as technical competence, patient safety, customer service, and productivity. Contractor performance will be monitored by the government using the standards as outlined in this Performance Work Statement (PWS) and methods of surveillance detailed in the Quality Assurance Surveillance Plan (QASP). The QASP will be attached to the resultant task order and shall define the methods and frequency of surveillance conducted.

- 15.2. The phlebotomist(s) are expected to actively participate in the laboratory's performance improvement activities as part of the contracted service time. Performance Improvement Activities may include the following:

STAT turnaround time
Specimen labeling errors
Specimen Quality Issues
Patient Safety/Incident
Report.

- 15.3. Patient Complaints: The CO will resolve complaints concerning Contractor relations with the Government employees or patients. The CO is final authority on validating complaints. In the event that The Contractor is involved and named in a validated patient complaint, the Government reserves the right to refuse acceptance of the services of such personnel. This does not preclude refusal in the event of incidents involving physical or verbal abuse.

- 15.4. The Government reserves the right to refuse acceptance of any phlebotomist(s) at any time after performance begins, if personal or professional conduct jeopardizes patient care or interferes with the regular and ordinary operation of the facility. Breaches of conduct include intoxication or debilitation resulting from drug use, theft, patient abuse, dereliction or negligence in performing directed tasks, or other conduct resulting in formal complaints by patient or other staff members to designated Government representatives. Standards for conduct shall mirror those prescribed by current federal personnel regulations. The CO and COR will deal with issues raised concerning Contractor's conduct. The final arbiter on questions of acceptability is the CO.

- 15.5. Performance Standard:

- 15.5.1. Measure: Accuracy

- 15.5.2. Standard: Ensures patients' safety by verifying two (2) Patient identification such as Full Name and Social Security Number using active and not passive method before venipuncture. Performs Laboratory test as prescribed by the laboratory Procedure Manual and within assigned confidence limits for accuracy and reproducibility. Must learn new procedures as they are added. Explain collection procedure to patients who must self-collect specimens Urine culture, Semen Analysis, Urine Cytology x 3, Urine 24hrs Collection, Lactose, Xylose and Glucose Tolerance test to submit for analysis. Performs venipuncture following Standard Operating Procedure with the least discomfort possible.

Acceptable Quality Levels:

Fully Successful: No more than three (3) deviations will be acceptable during the rating period depending upon severity and impact of the situation.

Exceptional: No more than one (1) deviation will be acceptable during the rating period.

Satisfactory: 5 or less.

Surveillance Method: Review of Problem Occurrence report for mislabeled samples.

15.5.3. Measure: Productivity

Standard: Accountability & Dependability; Takes personal responsibility for the quality and timeliness of work and achieves results with little oversight. Start to work on time and adjust work scheduled so that under normal circumstances (STAT) results are completed within time required (less than 1 hour of arrival to unit).

Adaptability & Flexibility: Adapt to changing service needs, conditions, and work responsibilities. Responds positively to change, embracing and using new practices of values to accomplish goals and solve problems. Willingly puts in extra time and effort in unusual and crisis situations, goes the extra mile to ensure the goal is met. Completes high volumes of work, keeping a rapid pace without sacrificing accuracy.

Follow instructions, policies, and procedures. Meets productivity standards, deadlines, and work scheduled. Adjust, prioritizes, and organizes work to achieve maximum productivity to meet the workload demands of the section. Actively participates in the training and or mentoring of new employee's and students. Monitor and Maintain the Phlebotomy Station Area as well the working stations supplies are available with sufficient materials for the required services and assists the supervisor in keeping Phlebotomy inventory up to date.

Acceptable Quality Level:

Fully Successful: Forty-eight (48) to Fifty-six (56) patients in eight (8) hour tour of duty will be accepted during the rating period.

Exceptional: Seventy (70) patients in eight (8) hour tour of duty will be accepted during the rating period. Surveillance Method: Periodic Inspection of electronic Qmatic System Queue Management Systems & Customer Journey Solutions (Qmatic System).

15.5.4. Measure: Education and Training

Standard: The Medical Technician(phlebotomist) must fulfill all mandatory education requirements and all trainings for use CPRS and VISTA computer programs by due dates.

Comply with Privacy TMS training yearly requirements by their corresponding due dates: "VA Privacy and Information Security Awareness and Rules of Behavior" and "Privacy and HIPAA Training".

Completes all mandatory annual trainings for safety, chemical hygiene, infection control, and other assigned programs, such as but not limited to TMS and Med Training Program (MTS) and Safety Knowledge Checklist before the due dates determined by the laboratory.

Completes and maintains annual competency requirements among the laboratory areas. Actively seeks and attends education programs or training to expand and improve job knowledge and skills and to maintain current professional licensure (if applicable).

Acceptable Quality Level:

Fully successful: Three (3) complaints per year regarding Education or Competency compliance are acceptable.

Exceptional: No more than one (1) complaint per year for this rating period.

Surveillance Method: Periodic Inspection of TMS, MTS, and due dates.

15.5.5. Measure: Customer Service

Standard: All customers (internal and external) are treated with courtesy and respect.

Relationships with supervisors, co-workers, stakeholders and others within the organization are professional and cooperative in nature. Takes in consideration customer's limitations (physical, mental and age related) during communication.

Earns others trust and respect through consistent honesty and professionalism in all interactions. Build constructive working relationships characterized by high level of acceptance, cooperation and mutual respect.

Promotes cooperation and commitment within a team to achieve goals and deliverable. Encourages team unity through sharing information or expertise, working together to solve problems, and putting team success first. Customer and Employee Feedback shall meet VA standards.

Acceptable Quality Level:

Fully Successful: No more than three (3) deviations will be acceptable during the rating period depending upon the severity and impact of the situation.

Exceptional: No more than one (1) deviation will be acceptable during the rating period.

Surveillance Method: Periodic Inspection of Patient Survey and Employee Feedback.

15.5.6. Measure: Safety

Standard: The Medical Technician must perform blood collection in compliance with approved/established Laboratory Safety Procedures/Practices. Adheres to all workplace and trade safety laws, regulations, standards, and practices. When handling blood/body fluids/tissue(s) or any other general potential hazard, Universal Precautions shall always be observed. Clinical staff must follow all standard guidelines and universal precautions when working with body fluids or tissue. The use of appropriate Personal Protective Equipment (PPE) such as gloves, eye protection (face-shield - use when handling open blood/urine/fluids specimens) and closed lab coat/gown are required to be worn when handling specimens and when working at any laboratory area to prevent exposure to potentially infectious agents or any chemical agent.

Follows safety and other regulations when handling and operating equipment. Organizes the personal workspace to minimize the likelihood of an accident or other unsafe situation.

Promotes a safe, clean and aesthetically pleasing environment, to reduce the risk of health case-associated infections. Avoids shortcuts that increase health and safety risks to self or other. The employee is responsible of maintaining assigned work area in neat and clean conditions by disinfecting workstations, laboratory benches/surfaces and instruments during scheduled shift. The Medical Technician must ensure that sharp containers and biohazard waste are replaced and removed from the area when becomes full (reached the full line level).

Follows proper hand wash techniques accordingly with established procedures/policy. Must have knowledge in following Service *Utility Failure Plan. Participates in Fire Drills and have knowledge in Fire Safety (RACE and PASS).

Acceptable Quality Level:

Fully successful: Three (3) complaints per year regarding Safety and PPE compliance are acceptable as long as there are no fatal consequences to patients and/or peers.

Exceptional: No more than one (1) deviation during this rating period.

Surveillance Method: Periodic Visual inspection.

16. **REGISTRATION WITH THE CONTRACTOR PERFORMANCE ASSESSMENT REPORTING SYSTEM:**

16.1.1. As prescribed in FAR part 42.15 the Department of Veteran Affairs (VA) evaluates Contractor past performance on all contracts that exceed \$250,000.00 and shares those evaluations with other Federal Government contract specialists and procurement officials. The FAR requires that the Contractor be provided an opportunity to comment on past performance evaluations prior to each report closing. To fulfill this requirement VA uses an online database, CPARS, which is maintained by the Naval Seal Logistics Center in Portsmouth, New Hampshire. CPARS has connectivity with the Past Performance Information Retrieval System (PPIRS) database, which is available to all Federal agencies. PPIRS is the system used to collect and retrieve performance assessment reports used in source selection determinations and completed CPARS report cards transferred to PPIRS. CPARS also includes access to the federal awardee performance and integrity information system (FAPIIS). FAPIIS is a web-enabled application accessed via CPARS for Contractor responsibility determination information.

16.1.2. Each Contractor whose contract award is estimated to exceed \$250,000 requires a CPARS evaluation. A government Focal Point will register your contract within thirty days after contract award and, at that time, you will receive an email message with a User ID (to be used when reviewing evaluations). Additional information regarding the evaluation process can be found at www.cpars.gov or if you have any questions, you may contact the Customer Support Desk @ DSN: 684-1690 or COMM: 207-438-1690.

16.1.2.1. For contracts with a period of one (1) year or less, the contracting officer will perform a single evaluation when the contract is complete. For contracts exceeding one (1) year, the contracting officer will evaluate the Contractor's performance annually. Interim reports will be filed each year until the last year of the contract, when the final report will be completed. The report shall be assigned in CPARS to the Contractor's designated representative for comment. The Contractor representative will have sixty (60) days to submit any comments and re-assign the report to the CO.

16.1.2.2. Failure for the Contractor's representative to respond to the evaluation within those sixty (60) days, will result in the Government's

evaluation being placed on file in the database with a statement that the Contractor failed to respond; the Contractor's representative will be "locked out" of the evaluation and may no longer send comments.

17. GOVERNMENT RESPONSIBILITIES:

- 17.1. Equipment/Supplies/Forms: The phlebotomist(s) shall have the use of all required equipment, supplies and forms for performing services required by this task order.
- 17.2. Task Administration/Performance Monitoring: After award of task order, all inquiries and correspondence relative to the administration of the task order shall be addressed to the COR.
- 17.3. CO Responsibilities:

CO – Fernando G. Defillo: 813-796-3917

Email: Fernando.defillo@va.gov

The Contracting Officer is the only person authorized to approve changes or modify any of the requirements of this task order. The Contractor shall communicate with the Contracting Officer on all matters pertaining to task order administration. Only the Contracting Officer is authorized to make commitments or issue any modification to include (but not limited to) terms affecting price, quantity, or quality of performance of this task order.

17.3.1. The Contracting Officer will resolve complaints concerning Contractor relations with the Government employees or patients. The Contracting Officer is final authority on validating complaints. In the event the Contractor effects any such change at the direction of any person other than the Contracting Officer without authority, no adjustment shall be made in the task order price to cover an increase in costs incurred as a result thereof.

17.3.2. In the event that contracted services do not meet quality and/or safety expectations, the best remedy will be implemented, to include but not limited to a targeted and time limited performance improvement plan; increased monitoring of the contracted services; consultation or training for phlebotomist(s) to be provided by the VA; replacement of the task order personnel and/or renegotiation of the task order terms or termination of the task order.

17.4. COR Responsibilities:

COR: Josue Rosario
Phone: 787-641-7582 ext.11810
Email: josue.rosario-reyes@va.gov

17.4.1. Prior to award, the Contracting Officer will designate a VA Caribbean Healthcare System (VAMC) employee as Contracting Officer Representative (COR). All work coordination will be made through the Contracting Officer Representative (COR). The Contractor shall be provided a copy of the letter of delegation, authorizing the COR at the commencement of the term of this task order. No other person shall be authorized to act in such capacity unless appointed in writing by the Contracting Officer. The COR will be the VA official responsible for verifying contract compliance. After contract award, any incidents of contractor noncompliance as evidenced by the monitoring procedures shall be forwarded immediately to the Contracting Officer.

18. ORGANIZATIONAL RELATIONSHIP:

- 18.1. Routine work is performed with a minimum of supervision. The phlebotomist(s) shall receive workload and patient assignments from OPA Laboratory Service Supervisor or designee.
- 18.2. The phlebotomist(s) shall act in a thoroughly professional manner at all times. They shall work in harmony with other members of the professional and technical staff, in keeping with the established patterns of interaction at the VA facility where they are working. Tact and courtesy are mandatory when interacting with patients and staff.
- 18.3. The phlebotomist(s) shall report to duty stations on time and as scheduled by the department supervisor.

19. SPECIAL CONTRACT REQUIREMENTS:

19.1. Billing:

19.1.1. Invoice requirements and supporting documentation: Supporting documentation and invoice must be submitted no later than the 20th workday of the month. Subsequent changes or corrections shall be submitted by separate invoice. In addition to information required for submission of a "proper" invoice in accordance with FAR 52.212-4 (g), all invoices must include:

19.1.1.1. Name and Address of Contractor

19.1.1.2. Invoice Date and Invoice Number

19.1.1.3. Contract Number and Purchase/Task Order Number

19.1.1.4. Date of Service

19.1.1.5. Phlebotomist(s)

19.1.1.6. Hourly Rate

19.1.1.7. Quantity of hours worked

19.1.1.8. Total price

20. VENDOR ELECTRONIC INVOICE SUBMISSION METHODS:

20.1. Facsimile, e-mail, and scanned documents are not acceptable forms of submission for payment requests. Electronic form means an automated system transmitting information electronically according to the accepted electronic data transmission methods below:

20.1.1. All invoices from the contractor shall be submitted electronically in accordance with VAAR Clause 852.232-72 Electronic Submission of Payment Requests.

20.1.1.1. The Contractor may contact FSC at the phone number or email address listed below with any questions about the e-invoicing program:

20.1.1.2. FSC e-Invoice Contact Information: 1-877-353-9791

20.1.1.3. FSC e-invoice email: vafscshd@va.gov

20.2. Payment Adjustments/Performance Related Payment Deductions:

20.2.1. Invoices will be prorated for partial days/hours worked. The contractor shall be paid only for actual work performed onsite. Task order providers shall be responsible for reporting time worked accurately. The Contractor shall be paid for actual hours performed.

20.2.2. The contract shall be adjusted in accordance with actual performance.

20.3. Payments in Full/No Billing VA Beneficiaries: The Contractor shall accept payment for services rendered under this task order as payment in full. VA beneficiaries shall not under any circumstances be charged nor their insurance companies charged for services rendered by the Contractor, even if VA does not pay for those services. This provision shall survive the termination or ending of the task order.

20.3.1. To the extent that the Veteran desires services which are not a VA benefit or covered under the terms of this task order, the Contractor must notify the Veteran that there will be a charge for such service and that the VA will not be responsible for payment.

20.3.2. The Contractor shall not bill, charge, collect a deposit from, seek compensation, remuneration, or reimbursement from, or have any recourse against, any person or entity other than VA for services provided pursuant to this task order. It shall be considered fraudulent for the Contractor to bill

other third-party insurance sources (including Medicare) for services rendered to Veteran enrollees under this task order.

21. CONTRACTOR SECURITY REQUIREMENTS (HANDBOOK 6500.6):

21.1. Access to VA Information and VA Information Systems

21.1.1. A contractor/subcontractor shall request logical (technical) or physical access to VA information and VA information systems for their employees, subcontractors, and affiliates only to the extent necessary to perform the services specified in the contract, agreement, or task order.

21.1.2. All contractors, subcontractors, and third-party servicers and associates working with VA information are subject to the same investigative requirements as those of VA appointees or employees who have access to the same types of information. The level and process of background security investigations for contractors must be in accordance with VA Directive and Handbook 0710, Personnel Suitability and Security Program. The Office for Operations, Security, and Preparedness is responsible for these policies and procedures.

21.1.3. Task order personnel who require access to national security programs must have a valid security clearance. National Industrial Security Program (NISP) was established by Executive Order 12829 to ensure that cleared U.S. defense industry contract personnel safeguard the classified information in their possession while performing work on contracts, programs, bids, or research and development efforts. The Department of Veterans Affairs does not have a Memorandum of Agreement with Defense Security Service (DSS). Verification of a Security Clearance must be processed through the Special Security Officer located in the Planning and National Security Service within the Office of Operations, Security, and Preparedness.

21.1.4. Custom software development and outsourced operations must be located in the U.S. to the maximum extent practical. If such services are proposed to be performed abroad and are not disallowed by other VA policy or mandates, the contractor/subcontractor must state where all non-U.S. services are provided and detail a security plan, deemed to be acceptable by VA, specifically to address mitigation of the resulting problems of communication, control, data protection, and so forth. Location within the U.S. may be an evaluation factor.

21.1.5. The contractor or subcontractor must notify the Contracting Officer immediately when an employee working on a VA system or with access to VA information is reassigned or leaves the contractor or subcontractor's employ. The Contracting Officer must also be notified immediately by the contractor or subcontractor prior to an unfriendly termination.

21.2. Security Incident Investigation:

21.2.1. The term "security incident" means an event that has, or could have, resulted in unauthorized access to, loss or damage to VA assets, or sensitive

information, or an action that breaches VA security procedures. The contractor/subcontractor shall immediately notify the COR and simultaneously, the designated ISO and Privacy Officer for the task order of any known or suspected security/privacy incidents, or any unauthorized disclosure of sensitive information, including that contained in system(s) to which the contractor/subcontractor has access.

- 21.2.2. To the extent known by the contractor/subcontractor, the Contractor/subcontractor's notice to VA shall identify the information involved, the circumstances surrounding the incident (including to whom, how, when, and where the VA information or assets were placed at risk or compromised), and any other information that the contractor/subcontractor considers relevant.
- 21.2.3. With respect to unsecured protected health information, the business associate is deemed to have discovered a data breach when the business associate knew or should have known of a breach of such information. Upon discovery, the business associate must notify the covered entity of the breach. Notifications need to be made in accordance with the executed business associate agreement.
- 21.2.4. In instances of theft or break-in or other criminal activity, the contractor/subcontractor must concurrently report the incident to the appropriate law enforcement entity (or entities) of jurisdiction, including the VA OIG and Security and Law Enforcement. The contractor, its employees, and its subcontractors and their employees shall cooperate with VA and any law enforcement authority responsible for the investigation and prosecution of any possible criminal law violation(s) associated with any incident. The contractor/subcontractor shall cooperate with VA in any civil litigation to recover VA information, obtain monetary or other compensation from a third party for damages arising from any incident, or obtain injunctive relief against any third party arising from, or related to, the incident.
- 21.3. Liquidated Damages for Data Breach:
 - 21.3.1. Consistent with the requirements of 38 U.S.C. §5725, a contract may require access to sensitive personal information. If so, the contractor is liable to VA for liquidated damages in the event of a data breach or privacy incident involving any SPI the contractor/subcontractor processes or maintains under this task order.
 - 21.3.2. The contractor/subcontractor shall provide notice to VA of a "security incident" as set forth in the Security Incident Investigation section above. Upon such notification, VA must secure from a non-Department entity or the VA Office of Inspector General an independent risk analysis of the data breach to determine the level of risk associated with the data breach for the potential misuse of any sensitive personal information involved in the data breach. The term 'data breach' means the loss, theft, or other unauthorized access, or any access other than that incidental to the scope of employment, to data containing sensitive personal information, in electronic or printed form, that results in the potential

compromise of the confidentiality or integrity of the data. Contractor shall fully cooperate with the entity performing the risk analysis. Failure to cooperate may be deemed a material breach and grounds for contract termination.

21.3.3. Each risk analysis shall address all relevant information concerning the data breach, including the following:

21.3.3.1. Nature of the event (loss, theft, unauthorized access);

21.3.3.2. Description of the event, including:

21.3.3.3. date of occurrence;

21.3.3.4. data elements involved, including any PII, such as full name, social security number, date of birth, home address, account number, disability code; (3) Number of individuals affected or potentially affected.

21.3.3.5. Names of individuals or groups affected or potentially affected;

21.3.3.6. Ease of logical data access to the lost, stolen or improperly accessed data in light of the degree of protection for the data, e.g., unencrypted, plain text;

21.3.3.7. Amount of time the data has been out of VA control;

21.3.3.8. The likelihood that the sensitive personal information will or has been compromised (made accessible to and usable by unauthorized persons);

21.3.3.9. Known misuses of data containing sensitive personal information, if any;

21.3.3.10. Assessment of the potential harm to the affected individuals;

21.3.3.11. Data breach analysis as outlined in 6500.2 Handbook, Management of Security and Privacy Incidents, as appropriate; and

21.3.3.12. Whether credit protection services may assist record subjects in avoiding or mitigating the results of identity theft based on the sensitive personal information that may have been compromised.

21.3.3.13. Based on the determinations of the independent risk analysis, the contractor shall be responsible for paying to the VA liquidated damages to cover the cost of providing credit protection services to affected individuals consisting of the following.

21.3.3.13.1. Notification.

21.3.3.13.2. One (1) year of credit monitoring services consisting of automatic daily monitoring of at least 3 relevant credit bureau reports.

21.3.3.13.3. Data breach analysis;

21.3.3.13.4. Fraud resolution services, including writing dispute letters, initiating fraud alerts and credit freezes, to assist affected individuals to bring matters to resolution;

21.3.3.13.5. One (1) year of identity theft insurance with \$20,000.00 coverage at \$0 deductible; and

21.3.3.13.6. Necessary legal expenses the subjects may incur to repair falsified or damaged credit records, histories, or financial affairs.

21.4. Training:

21.4.1. All contractor employees and subcontractor employees requiring access to VA information and VA information systems shall complete the following before being granted access to VA information and its systems:

21.4.2. Sign and acknowledge (either manually or electronically) understanding of and responsibilities for compliance with the Contractor Rules of Behavior, Appendix E relating to access to VA information and information systems;

21.4.3. Successfully complete the VA Cyber Security Awareness and Rules of Behavior training and annually complete required security training;

21.4.4. Successfully complete the appropriate VA privacy training and annually complete required privacy training; and

21.4.5. Successfully complete any additional cyber security or privacy training, as required for VA personnel with equivalent information system access [to be defined by the VA program official and provided to the contracting officer for inclusion in the solicitation document – e.g., any role-based information security training required in accordance with NIST Special Publication 800- 16, Information Technology Security Training Requirements.]

21.5. Emergency Health Services Provided To Personnel While on Duty:

The VA will render emergency health services for an incapacitating injury or otherwise serious illness occurring while on duty. All services, to include wages earned during period of initial medical evaluation provided by the VA will be reimbursed

by the Contractor. The Contractor shall furnish the VA with the necessary injury/illness form(s) for reporting purposes. The VA for statistical and/or billing purposes will retain a copy of the complete form(s).

SECTION C - CONTRACT CLAUSES

C.1 52.212-4 CONTRACT TERMS AND CONDITIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (DEVIATION OCT 2025)

As prescribed in 12.205(b)(3), insert the following clause:

Terms and Conditions—Commercial Products and Commercial Services (Deviation Date)

(a) Definitions. The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference.

(b) Inspection/Acceptance. The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post acceptance rights—

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(c) Assignment. The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (e.g., use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(d) Changes. Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(e) Disputes. This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal, or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause FAR 52.233-1, Disputes, which is incorporated in this contract by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(f) Excusable delays. The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence. Examples of occurrences include acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. When an excusable delay occurs, the Contractor shall—

(1) Notify the Contracting Officer in writing as soon as possible;

(2) Remedy the delay as quickly as possible; and

(3) Notify the Contracting Officer when the occurrence is over.

(g) Invoice. The Government will handle invoices according to the Prompt Payment Act (31 U.S.C. 3903) and 5 CFR part 1315. The Contractor shall submit invoices to the address designated in the contract to receive invoices. An invoice must include the information required by 5 CFR part 1315.9(b).

(h) Patent indemnity. The Contractor shall indemnify the Government and its officers, employees, and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark, or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) Payment—

(1) Items accepted. Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) Prompt payment. The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.

(3) Discount. In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(4) Overpayments. If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall—

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the—

(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable;

(D) Contractor point of contact; and

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(5) Interest.(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) Final decisions. The Contracting Officer will issue a final decision as required by FAR part 33 if—

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see FAR part 32).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a termination for cause.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on—

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures for interest credits prescribed in FAR part 32 in effect on the date of this contract.

(j) Risk of loss. Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon—

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) Taxes. The contract price includes all applicable Federal, State, and local taxes and duties.

(l) Termination for the Government's convenience. The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost

accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) Termination for cause. The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. The Government will send a cure notice to the Contractor, unless the reason for the termination is late delivery. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) Title. Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) Warranty. The Contractor warrants and implies that the items delivered under this contract are merchantable and fit for use for the particular purpose described in this contract.

(p) Limitation of liability. Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) Compliance with laws unique to Government contracts. The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Government-financed air transportation; and 41 U.S.C. chapter 21 relating to procurement integrity.

(r) Order of precedence. Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

- (1) The schedule of supplies/services;
- (2) The Disputes, Payments, Invoice, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;
- (3) Other contract clauses incorporated in the solicitation or contract;
- (4) Addenda to this solicitation or contract;
- (5) Solicitation provisions incorporated in the solicitation;
- (6) Other paragraphs of this clause;
- (7) Other documents, exhibits, and attachments; and
- (8) The specification.

(s) Unauthorized obligations.

(1) Except as stated in paragraph (s)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any

other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government-authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an "I agree" click box or other comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (s)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(t) Comptroller General examination of record. This paragraph applies if this contract was awarded using other than sealed bid procedures and is in excess of the simplified acquisition threshold on the date of award of this contract.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices, at all reasonable times, the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR part 4, longer period required by statute, or periods specified in other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This clause does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(u) Incorporation by reference. The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

Alternate I (Deviation Date). When contemplating a time-and-materials or labor-hour contract, substitute the following paragraphs (a), (b), (i), (l), and (m) for those in the basic clause.

(a) The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference. As used in this clause—

Direct materials means those materials that enter directly into the end product, or that are used or consumed directly in connection with the furnishing of the end product or service.

Hourly rate means the rate(s) prescribed in the contract for payment for labor that meets the labor category qualifications of a labor category specified in the contract that are—

- (1) Performed by the contractor;
- (2) Performed by the subcontractors; or
- (3) Transferred between divisions, subsidiaries, or affiliates of the contractor under a common control.

Materials means—

- (1) Direct materials, including supplies transferred between divisions, subsidiaries, or affiliates of the contractor under a common control;
- (2) Subcontracts for supplies and incidental services for which there is not a labor category specified in the contract;
- (3) Other direct costs (e.g., incidental services for which there is not a labor category specified in the contract, travel, computer usage charges, etc.);
- (4) The following subcontracts for services which are specifically excluded from the hourly rate: [Insert any subcontracts for services to be excluded from the hourly rates prescribed in the schedule.]; and
- (5) Indirect costs specifically provided for in this clause.

Subcontract means any contract, as defined in FAR 2.101, entered into with a subcontractor to furnish supplies or services for performance of the prime contract or a subcontract including transfers between divisions, subsidiaries, or affiliates of a contractor or subcontractor. It includes, but is not limited to, purchase orders, and changes and modifications to purchase orders.

(b) Inspection/Acceptance.

- (1) The Government has the right to inspect and test all materials furnished and services performed under this contract at all places and times before acceptance. The Government will perform inspections and tests in a manner that will not unduly delay the work.
- (2) If the Government performs inspection or tests on the premises of the Contractor or a subcontractor, the Contractor shall furnish and shall require subcontractors to furnish all reasonable facilities and assistance for the safe and convenient performance of these duties.
- (3) Unless otherwise specified in the contract, the Government will accept or reject services and materials at the place of delivery as promptly as practicable after delivery, and they will be presumed accepted 60 days after the date of delivery, unless accepted earlier.
- (4) At any time during contract performance, but not later than 6 months (or such other time as may be specified in the contract) after acceptance of the services or materials last delivered under this contract, the Government may require the Contractor to replace or correct services or materials that at time of delivery failed to meet contract requirements. Except as otherwise specified in paragraph (b)(6) of this clause, the cost of replacement or correction shall be determined under paragraph (i) of this clause, but the “hourly rate” for labor hours incurred in the replacement or correction shall be reduced to exclude that portion of the rate attributable to profit. Unless otherwise specified below, the portion of the “hourly rate” attributable to profit shall be 10 percent. The Contractor shall not tender for acceptance materials and services required to be replaced or corrected without disclosing the former requirement for replacement or

correction, and, when required, shall disclose the corrective action taken. [Insert portion of labor rate attributable to profit.]

(5)(i) If the Contractor fails to proceed with reasonable promptness to perform required replacement or correction, and if the replacement or correction can be performed within the ceiling price (or the ceiling price as increased by the Government), the Government may—

(A) By contract or otherwise, perform the replacement or correction, charge to the Contractor any increased cost, or deduct such increased cost from any amounts paid or due under this contract; or

(B) Terminate this contract for cause.

(ii) Failure to agree to the amount of increased cost to be charged to the Contractor shall be a dispute under the Disputes clause of the contract.

(6) Notwithstanding paragraphs (b)(4) and (5) of this clause, the Government may, at any time, require the Contractor to remedy by correction or replacement, without cost to the Government, any failure by the Contractor to comply with the requirements of this contract, if the failure is due to—

(i) Fraud, lack of good faith, or willful misconduct on the part of the Contractor's managerial personnel; or

(ii) The conduct of one or more of the Contractor's employees selected or retained by the Contractor after any of the Contractor's managerial personnel has reasonable grounds to believe that the employee is habitually careless or unqualified.

(7) This clause applies in the same manner and to the same extent to corrected or replacement materials or services as to materials and services originally delivered under this contract.

(8) The Contractor has no obligation or liability under this contract to correct or replace materials and services that at time of delivery do not meet contract requirements, except as provided in this clause or as may be otherwise specified in the contract.

(9) Unless otherwise specified in the contract, the Contractor's obligation to correct or replace Government-furnished property shall be governed by the clause pertaining to Government property.

(i) Payments.

(1) Work performed. The Government will pay the Contractor as follows upon the submission of commercial invoices approved by the Contracting Officer:

(i) Hourly rate.

(A) The amounts shall be computed by multiplying the appropriate hourly rates prescribed in the contract by the number of direct labor hours performed. Fractional parts of an hour shall be payable on a prorated basis.

(B) The rates shall be paid for all labor performed on the contract that meets the labor qualifications specified in the contract. Labor hours incurred to perform tasks for which labor qualifications were specified in the contract will not be paid to the extent the work is performed by individuals that do not meet the qualifications specified in the contract, unless specifically authorized by the Contracting Officer.

(C) Invoices may be submitted once each month (or at more frequent intervals, if approved by the Contracting Officer) to the Contracting Officer or the authorized representative.

(D) When requested by the Contracting Officer or the authorized representative, the Contractor shall substantiate invoices (including any subcontractor hours reimbursed at the hourly rate in the schedule) by evidence of actual payment, individual daily job timecards, records that verify the employees meet the qualifications for the labor categories specified in the contract, or other substantiation specified in the contract.

(E) Unless the Schedule prescribes otherwise, the hourly rates in the Schedule shall not be varied by virtue of the Contractor having performed work on an overtime basis.

(1) If no overtime rates are provided in the Schedule and the Contracting Officer approves overtime work in advance, overtime rates shall be negotiated.

(2) Failure to agree upon these overtime rates shall be treated as a dispute under the Disputes clause of this contract.

(3) If the Schedule provides rates for overtime, the premium portion of those rates will be reimbursable only to the extent the overtime is approved by the Contracting Officer.

(ii) Materials.

(A) If the Contractor furnishes materials that meet the definition of a commercial product at FAR 2.101, the price to be paid for such materials shall not exceed the Contractor's established catalog or market price, adjusted to reflect the—

(1) Quantities being acquired; and

(2) Any modifications necessary because of contract requirements.

(B) Except as provided for in paragraph (i)(1)(ii)(A) and (D)(2) of this clause, the Government will reimburse the Contractor the actual cost of materials (less any rebates, refunds, or discounts received by the contractor that are identifiable to the contract) provided the Contractor—

(1) Has made payments for materials in accordance with the terms and conditions of the agreement or invoice; or

(2) Makes these payments within 30 days of the submission of the Contractor's payment request to the Government and such payment is in accordance with the terms and conditions of the agreement or invoice.

(C) To the extent able, the Contractor shall—

(1) Obtain materials at the most advantageous prices available with due regard to securing prompt delivery of satisfactory materials; and

(2) Give credit to the Government for cash and trade discounts, rebates, scrap, commissions, and other amounts that are identifiable to the contract.

(D) Unless listed below, other direct and indirect costs will not be reimbursed.

(1) Other direct costs. The Government will reimburse the Contractor on the basis of actual cost for the following, provided such costs comply with the requirements in paragraph (i)(1)(ii)(B) of this clause: [Insert each element of other direct costs (e.g., travel, computer usage charges, etc. Insert "None" if no reimbursement for other direct costs will be provided. If this is an indefinite

delivery contract, the Contracting Officer may insert "Each order must list separately the elements of other direct charge(s) for that order or, if no reimbursement for other direct costs will be provided, insert 'None'".]

(2) Indirect costs (material handling, subcontract administration, etc.). The Government will reimburse the Contractor for indirect costs on a pro-rata basis over the period of contract performance at the following fixed price: [Insert a fixed amount for the indirect costs and payment schedule. Insert "\$0" if no fixed price reimbursement for indirect costs will be provided. (If this is an indefinite delivery contract, the Contracting Officer may insert "Each order must list separately the fixed amount for the indirect costs and payment schedule or, if no reimbursement for indirect costs, insert 'None'").]

(2) Total cost. The total cost to the Government for the performance of this contract shall not exceed the ceiling price set forth in the Schedule. The Contractor agrees to use its best efforts to perform the work specified in the Schedule and all obligations under this contract within such ceiling price. If at any time the Contractor has reason to believe that the hourly rate payments and material costs that will accrue in performing this contract in the next succeeding 30 days, if added to all other payments and costs previously accrued, will exceed 85 percent of the ceiling price in the Schedule, the Contractor shall notify the Contracting Officer giving a revised estimate of the total price to the Government for performing this contract with supporting reasons and documentation. If at any time during the performance of this contract, the Contractor has reason to believe that the total price to the Government for performing this contract will be substantially greater or less than the stated ceiling price, the Contractor shall so notify the Contracting Officer, giving a revised estimate of the total price for performing this contract, with supporting reasons and documentation. If at any time during performance of this contract, the Government has reason to believe that the work to be required in performing this contract will be substantially greater or less than the stated ceiling price, the Contracting Officer will so advise the Contractor, giving the revised estimate of the total amount of effort to be required under the contract.

(3) Ceiling price. The Government will not be obligated to pay the Contractor any amount in excess of the ceiling price in the Schedule, and the Contractor shall not be obligated to continue performance if to do so would exceed the ceiling price set forth in the Schedule, unless and until the Contracting Officer notifies the Contractor in writing that the ceiling price has been increased and specifies in the notice a revised ceiling that shall constitute the ceiling price for performance under this contract. When and to the extent that the ceiling price set forth in the Schedule has been increased, any hours expended and material costs incurred by the Contractor in excess of the ceiling price before the increase shall be allowable to the same extent as if the hours expended and material costs had been incurred after the increase in the ceiling price.

(4) Access to records. At any time before final payment under this contract, the Contracting Officer (or authorized representative) will have access to the following (access shall be limited to the listing below unless otherwise agreed to by the Contractor and the Contracting Officer):

(i) Records that verify that the employees whose time has been included in any invoice meet the qualifications for the labor categories specified in the contract;

(ii) For labor hours (including any subcontractor hours reimbursed at the hourly rate in the schedule), when timecards are required as substantiation for payment—

(A) The original timecards (paper-based or electronic);

(B) The Contractor's timekeeping procedures;

(C) Contractor records that show the distribution of labor between jobs or contracts; and

(D) Employees whose time has been included in any invoice for the purpose of verifying that these employees have worked the hours shown on the invoices.

(iii) For material and subcontract costs that are reimbursed on the basis of actual cost—

(A) Any invoices or subcontract agreements substantiating material costs; and

(B) Any documents supporting payment of those invoices.

(5) Overpayments/Underpayments. Each payment previously made shall be subject to reduction to the extent of amounts, on preceding invoices, that are found by the Contracting Officer not to have been properly payable and shall also be subject to reduction for overpayments or to increase for underpayments. The Contractor shall promptly pay any such reduction within 30 days unless the parties agree otherwise. The Government will pay any such increases within 30 days, unless the parties agree otherwise. The Contractor's payment will be made by check. If the Contractor becomes aware of a duplicate invoice payment or that the Government has otherwise overpaid on an invoice payment, the Contractor shall—

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the—

(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable; and

(D) Contractor point of contact.

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(6) Interest.

(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury, as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, and then at the rate applicable for each six-month period as established by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) The Contracting Officer will issue a final decision if—

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt in a timely manner;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer.

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a default termination.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on—

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures prescribed in FAR part 32 in effect on the date of this contract.

(viii) Upon receipt and approval of the invoice designated by the Contractor as the “completion invoice” and supporting documentation, and upon compliance by the Contractor with all terms of this contract, any outstanding balances will be paid within 30 days unless the parties agree otherwise. The completion invoice, and supporting documentation, shall be submitted by the Contractor as promptly as practicable following completion of the work under this contract, but in no event later than 1 year (or such longer period as the Contracting Officer may approve in writing) from the date of completion.

(7) Release of claims. The Contractor, and each assignee under an assignment entered into under this contract and in effect at the time of final payment under this contract, shall execute and deliver, at the time of and as a condition precedent to final payment under this contract, a release discharging the Government, its officers, agents, and employees of and from all liabilities, obligations, and claims arising out of or under this contract, subject only to the following exceptions:

(i) Specified claims in stated amounts, or in estimated amounts if the amounts are not susceptible to exact statement by the Contractor.

(ii) Claims, together with reasonable incidental expenses, based upon the liabilities of the Contractor to third parties arising out of performing this contract, that are not known to the Contractor on the date of the execution of the release, and of which the Contractor gives notice in writing to the Contracting Officer not more than 6 years after the date of the release or the date of any notice to the Contractor that the Government is prepared to make final payment, whichever is earlier.

(iii) Claims for reimbursement of costs (other than expenses of the Contractor by reason of its indemnification of the Government against patent liability), including reasonable incidental expenses, incurred by the Contractor under the terms of this contract relating to patents.

(8) Prompt payment. The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.

(9) Discount. In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(l) Termination for the Government's convenience. The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work under this contract and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid an amount for direct labor hours (as defined in the Schedule of the contract) determined by multiplying the number of direct labor hours expended before the effective date of termination by the hourly rate(s) in the contract, less any hourly rate payments already made to the Contractor plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system that have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred that reasonably could have been avoided.

(m) Termination for cause. The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon written request, with adequate assurances of future performance. The Government will send a cure notice to the Contractor, unless the reason for the termination is late delivery. Subject to the terms of this contract, the Contractor shall be paid an amount computed under paragraph (i), Payments, of this clause, but the "hourly rate" for labor hours expended in furnishing work not delivered to or accepted by the Government shall be reduced to exclude that portion of the rate attributable to profit. Unless otherwise specified in paragraph (b)(4) of this clause, the portion of the "hourly rate" attributable to profit shall be 10 percent. In the event of termination for cause, the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(End of Clause)

ADDENDUM to FAR 52.212-4 CONTRACT TERMS AND CONDITIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

Clauses that are incorporated by reference (by Citation Number, Title, and Date), have the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

The following clauses are incorporated into 52.212-4 as an addendum to this contract:

C.2 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>
<https://www.va.gov/oal/library/vaar/>

(End of Clause)

<u>FAR</u> <u>Number</u>	<u>Title</u>	<u>Date</u>
52.202-1	DEFINITIONS	JUN 2020
52.203-3	GRATUITIES	APR 1984
52.203-6	RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT	JUN 2020
52.203-12	LIMITATION ON PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS	JUN 2020
52.203-17	CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS	NOV 2023
52.203-19	PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS	JAN 2017
52.204-9	PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL	JAN 2011
52.204-13	SYSTEM FOR AWARD MANAGEMENT—MAINTENANCE (DEVIATION)	NOV 2025
52.204-19	INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS	DEC 2014
52.209-6	PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED	NOV 2025
52.209-9	UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS	NOV 2025
52.209-10	PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS	NOV 2015
52.219-6	NOTICE OF TOTAL SMALL BUSINESS SET-ASIDE (DEVIATION)	NOV 2025
52.219-8	UTILIZATION OF SMALL BUSINESS CONCERNS (DEVIATION)	NOV 2025
52.219-14	LIMITATIONS ON SUBCONTRACTING (DEVIATION)	NOV 2025
52.222-3	CONVICT LABOR (DEVIATION)	NOV 2025
52.222-35	EQUAL OPPORTUNITY FOR VETERANS (DEVIATION)	NOV 2025
52.222-36	EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES (DEVIATION)	NOV 2025
52.222-37	EMPLOYMENT REPORTS ON VETERANS (DEVIATION)	NOV 2025
52.222-40	NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT (DEVIATION)	NOV 2025
52.222-41	SERVICE CONTRACT LABOR STANDARDS (DEVIATION)	NOV 2025
52.222-42	STATEMENT OF EQUIVALENT RATES FOR FEDERAL HIRES	MAY 2014
52.222-43	FAIR LABOR STANDARDS ACT AND SERVICE CONTRACT LABOR STANDARDS-PRICE ADJUSTMENT (MULTIPLE YEAR AND OPTION CONTRACTS) (DEVIATION)	NOV 2025
52.222-50	COMBATING TRAFFICKING IN PERSONS (DEVIATION)	NOV 2025
52.222-54	EMPLOYMENT ELIGIBILITY VERIFICATION (DEVIATION)	NOV 2025
52.222-55	MINIMUM WAGES FOR CONTRACTOR WORKERS UNDER EXECUTIVE ORDER 14026 (DEVIATION)	NOV 2025
52.222-62	PAID SICK LEAVE UNDER EXECUTIVE ORDER 13706 (DEVIATION)	NOV 2025

52.223-5	POLLUTION PREVENTION AND RIGHT-TO-KNOW INFORMATION	MAY 2024
52.224-1	PRIVACY ACT NOTIFICATION	APR 1984
52.224-2	PRIVACY ACT	APR 1984
52.224-3	PRIVACY TRAINING	JAN 2017
52.226-8	ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING	MAY 2024
52.227-14	RIGHTS IN DATA—GENERAL	MAY 2014
52.228-5	INSURANCE—WORK ON A GOVERNMENT INSTALLATION	JAN 1997
52.229-3	FEDERAL, STATE, AND LOCAL TAXES (DEVIATION)	SEP 2025
52.232-18	AVAILABILITY OF FUNDS	APR 1984
52.232-33	PAYMENT BY ELECTRONIC FUNDS TRANSFER—SYSTEM FOR AWARD MANAGEMENT	OCT 2018
52.232-40	PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS	MAR 2023
52.233-3	PROTEST AFTER AWARD	AUG 1996
52.233-4	APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM	OCT 2004
52.237-2	PROTECTION OF GOVERNMENT BUILDINGS, EQUIPMENT, AND VEGETATION	APR 1984
52.240-93	BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS (DEVIATION)	NOV 2025
52.244-6DEV	SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES	OCT 2025
852.201-70	CONTRACTING OFFICER'S REPRESENTATIVE	DEC 2022
852.203-70	COMMERCIAL ADVERTISING	MAY 2018
852.204-70	PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL	MAY 2020
852.204-71	INFORMATION AND INFORMATION SYSTEMS SECURITY	FEB 2023
852.211-76	LIQUIDATED DAMAGES - REIMBURSEMENT FOR DATA BREACH COSTS ALTERNATE I	FEB 2023
852.222-71	COMPLIANCE WITH EXECUTIVE ORDER 13899 (DEVIATION) (APR 2025)	APR 2025
852.273-74	AWARD WITHOUT EXCHANGES	NOV 2021
(End of Addendum to 52.212-4)		

C.3 52.216-18 ORDERING (AUG 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from 07/01/2026 through 12/31/2031.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when—

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either—

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of Clause)

C.4 52.216-19 ORDER LIMITATIONS (OCT 1995)

(a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than \$2,500.00, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order.* The Contractor is not obligated to honor—

(1) Any order for a single item in excess of \$3,000,000.00;

(2) Any order for a combination of items in excess of \$3,000,000.00; or

(3) A series of orders from the same ordering office within 365 days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 365 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of Clause)

C.5 52.216-22 INDEFINITE QUANTITY (NOV 2025) (DEVIATION)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the ordering period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order, which may include order options to be exercised after the ordering period of this contract but before the end

of the period of performance of the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order, including options exercised, to the same extent as if the order were completed during the contract's ordering period; provided, that the Contractor shall not be required to make any deliveries under this contract after 06/30/2031.

(End of Clause)

C.6 52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 15 days.

(End of Clause)

C.7 52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 15 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 30 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed four (5) years and six (6) months.

(End of Clause)

C.8 SUPPLEMENTAL INSURANCE REQUIREMENTS

In accordance with FAR 28.307-2 and FAR 52.228-5, the following minimum coverage shall apply to this contract:

(a) Workers' compensation and employers liability: Contractors are required to comply with applicable Federal and State workers' compensation and occupational disease statutes. If occupational diseases are not compensable under those statutes, they shall be covered under the employer's liability section of the insurance policy, except when contract operations are so commingled with a Contractor's commercial operations that it would not be practical to require this coverage. Employer's liability coverage of at least \$100,000 is required, except in States with exclusive or monopolistic funds that do not permit workers' compensation to be written by private carriers.

(b) General Liability: \$500,000.00 per occurrences.

(c) Automobile liability: \$200,000.00 per person; \$500,000.00 per occurrence and \$20,000.00 property damage.

(d) The successful bidder must present to the Contracting Officer, prior to award, evidence of general liability insurance without any exclusionary clauses for asbestos that would void the general liability coverage.

(End of Clause)

**C.9 52.240-91 SECURITY PROHIBITIONS AND EXCLUSIONS (NOV 2025)
(DEVIATION)**

(a) *Definitions.* As used in this clause—

American Security Drone Act-covered foreign entity means an entity included on a list that the Federal Acquisition Security Council (FASC) develops and maintains and publishes in the System for Award Management (SAM) at <https://www.sam.gov> (section 1822 of Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Covered article, as defined in 41 U.S.C. 4713(k), means:

- (1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;
- (2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);
- (3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or
- (4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

Covered foreign country means The People's Republic of China.

Covered telecommunications equipment or services means—

- (1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);
- (2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);
- (3) Telecommunications or video surveillance services provided by such entities or using such equipment; or
- (4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Critical technology means—

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled—

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

FASC-prohibited unmanned aircraft system means an unmanned aircraft system manufactured or assembled by an American Security Drone Act—covered foreign entity.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring removing covered articles from executive agency information systems or excluding one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e):

(1) The Secretary of Homeland Security may issue FASCSA orders that apply to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.

(2) The Secretary of Defense may issue FASCSA orders that apply to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.

(3) The Director of National Intelligence (DNI) may issue FASCSA orders that apply to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Information technology, as defined in 40 U.S.C. 11101(6)—

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use—

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following—

(1) The Office of the Director of National Intelligence;

(2) The Central Intelligence Agency;

(3) The National Security Agency;

(4) The Defense Intelligence Agency;

(5) The National Geospatial-Intelligence Agency;

(6) The National Reconnaissance Office;

(7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;

(8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;

(9) The Bureau of Intelligence and Research of the Department of State;

(10) The Office of Intelligence and Analysis of the Department of the Treasury;

(11) The Office of Intelligence and Analysis of the Department of Homeland Security; or

(12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

Interconnection arrangement means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connecting a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

Kaspersky Lab-covered article means any hardware, software, or service that—

(1) Is developed or provided by a Kaspersky Lab-covered entity;

(2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab-covered entity; or

(3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab-covered entity.

Kaspersky Lab-covered entity means—

- (1) Kaspersky Lab;
- (2) Any successor entity to Kaspersky Lab, including any change in name, e.g., “Kaspersky”;
- (3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab;
or
- (4) Any entity of which Kaspersky Lab has a majority ownership.

National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—

(1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or

(2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

Subsidiary means an entity in which more than 50 percent of the entity is owned directly by a parent corporation or through another subsidiary of a parent corporation.

Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment, system, or service.

Unmanned aircraft means an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft (49 U.S.C. 44801(11)).

Unmanned aircraft system means an unmanned aircraft and associated elements (including communication links and the components that control the unmanned aircraft) that are required for the operator to operate safely and efficiently in the national airspace system (49 U.S.C. 44801(12)).

(b) *Prohibitions on providing or using specific products or services in performance of contract.* Unless a waiver or exception applies, the Contractor is prohibited from providing any products or services to the Government or using in the performance of the contract any of the following:

(1) A covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this

contract, including equipment provided by the Contractor's employees (section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328));

(2) A Kaspersky Lab-covered article (Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91));

(3) Covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system (paragraphs (a)(1)(A) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)). This does not prohibit contractors from providing—

(i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Prohibition on unmanned aircraft systems manufactured or assembled by American Security Drone Act—covered foreign entities.

(1) Prohibition. The Contractor is prohibited from—

(i) Delivering any FASC-prohibited unmanned aircraft system, which includes unmanned aircraft (i.e., drones) and associated elements (sections 1823 and 1826 of American Security Drone Act of 2023, within the National Defense Authorization Act for Fiscal Year 2024, Pub. L. 118-31, Div. A, Title XVIII, Subtitle B, 41 U.S.C. 3901 note prec.);

(ii) On or after December 22, 2025, operating a FASC-prohibited unmanned aircraft system in the performance of the contract (section 1824 of Pub. L. 118-31); and

(iii) On or after December 22, 2025, using Federal funds to procure or operate a FASC-prohibited unmanned aircraft system (section 1825 of Pub. L. 118-31).

(2) *Procedures.* The Contractor shall search SAM for the FASC-maintained list of American Security Drone Act—covered foreign entities before proposing, or using in performance of the contract, any unmanned aircraft system. Also, the Contractor shall ensure any effort or expenditure associated with a FASC-prohibited unmanned aircraft system is consistent with a corresponding exemption, exception, or waiver determination expressly stated in the contract.

(3) *Exemptions, exceptions, and waivers.* The prohibitions in paragraph (c) of this clause do not apply where the agency has determined an exemption, exception, or waiver applies, and the contract indicates that such a determination has been made. See sections 1823 through 1825 and 1832 of Public Law 118-31 for statutory requirements pertaining to exemptions, exceptions, and waivers.

(d) *Prohibition on using or providing specific products or services or conducting certain transactions regardless of connection to contract.*

(1) *Certain telecommunications and video surveillance equipment, systems, or services.*

(i) Unless an applicable waiver has been issued by the Government, the Contractor cannot use any equipment, systems, or services that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system (paragraph (a)(1)(B) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)).

(ii) This prohibition applies to using covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. This does not prohibit the contractor from using—

(A) A service that connects to the facilities of a third party, such as backhaul, roaming, or interconnection arrangements; or

(B) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Office of Foreign Assets Control Restrictions.

(i) Except as authorized by the Office of Foreign Assets Control (OFAC) in the Department of the Treasury, the Contractor shall not acquire, for use in the performance of this contract, any supplies or services if any proclamation, Executive order, or statute administered by OFAC, or if OFAC's implementing regulations at 31 CFR chapter V, would prohibit such a transaction by a person subject to the jurisdiction of the United States.

(ii) Except as authorized by OFAC, most transactions involving Cuba, Iran, and Sudan are prohibited, as are most imports from Burma or North Korea, into the United States or its outlying areas.

(A) For lists of entities and individuals subject to economic sanctions, see OFAC's List of Specially Designated Nationals and Blocked Persons at <https://home.treasury.gov/policy-issues/financial-sanctions/specially-designated-nationals-and-blocked-persons-list-sdn-human-readable-lists>.

(B) For more information about these restrictions, as well as updates, see OFAC's regulations at 31 CFR chapter V and at <https://home.treasury.gov/policy-issues/office-of-foreign-assets-control-sanctions-programs-and-information>.

(C) To conduct electronic screens of potential parties to regulated transactions, see the consolidated screening list at <https://www.trade.gov/consolidated-screening-list>, which consolidates multiple export screening lists of the Departments of Commerce, State, and the Treasury.

(3) Sudan prohibition. The Contractor is prohibited from conducting any restricted business operations in Sudan in accordance with Accountability and Divestment Act of 2007 (Pub. L. 110-174).

(4) Iran prohibitions.

(i) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, the contractor shall not engage in certain activities or transactions relating to Iran (section 6(b)(1)(A) of Iran Sanctions Act (50 U.S.C. 1701 note).

(ii) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, contractor shall not export certain sensitive technology to Iran, as determined by the President, and has an active exclusion in SAM (22 U.S.C. 8515).

(iii) The prohibition in paragraphs (d)(4)(i) and (d)(4)(ii) do not apply if the acquisition is subject to trade agreements and the offeror certifies that all the offered products are designated country end products or designated country construction material (see part 25).

(iv) Unless an exception applies or the Government grants a waiver, contractors are prohibited from knowingly engaging in any significant transaction (i.e., over \$15,000) with Iran's

Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked according to the International Emergency Economic Powers Act (section 6(b)(1)(B) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(e) Governmentwide exclusion and removal orders.

(1) Unless the Government has issued an applicable waiver, contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order as follows:

(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.

(ii) For all other solicitations and contracts, DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase "FASCSA order" in the System for Award Management (SAM) at <https://www.sam.gov> to locate applicable FASCSA orders.

(3) The Government may identify in the solicitation other FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resulting contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 40.204-1(c)).

(f) Reasonable inquiry. The contractor shall conduct a reasonable inquiry to determine if there are any prohibited products or services. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(g) Removal of prohibited products and services. For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that this clause prohibits.

(h) General report.

(1) If the Contractor identifies or is notified by any source, (including a subcontractor at any tier), that any product or service provided or used (or to be provided or used) during contract performance does not comply with any prohibition in this clause, then the Contractor shall report the following information, or as much information is known, in writing to the contracting office as identified in paragraph (h)(2) within 72 hours:

(i) Contract number and order number, if applicable;

(ii) The specific prohibition the product or service is not complying with;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the contractor would like the Government to consider a waiver, and asks for such a waiver);

(vii) Whether alternative products or services are available that would comply with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions implemented or recommended.

(2) If a report must be submitted to a contracting office, the Contractor shall submit the report as follows:

(i) If a Department of Defense contracting office, the Contractor shall report to the website at <https://dibnet.dod.mil>.

(ii) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(iii) For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

(3) If the report provided does not contain any of the information required by paragraph (h)(1) of this clause, and the contractor later discovers new information that is required by paragraph (h)(1) of this clause, then the contractor shall submit a subsequent report within 72 hours of discovering the new information.

(4) The contractor shall also report the information in paragraph (h)(1) if the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification.

(i) *New FASCSA orders report.*

(1) During contract performance, the Contractor shall review SAM at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (e) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(3) The Contractor shall submit a report to the contracting office identified in paragraph (h)(2) of this clause if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s). For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order. The Contractor shall report the following information within 72 hours for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order:

- (i) Contract number and order number, if applicable;
- (ii) Name of the covered article or source subject to a FASCSA order;
- (iii) The specific FASCSA order the product or service does not comply with;
- (iv) The elements of (h)(1)(iii) through (ix) of this clause.

(j) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (j) but excluding subparagraphs (d)(1) and (i)(1), in all subcontracts and other contractual instruments, including subcontracts for acquiring commercial products or commercial services.

(End of Provision)

C.10 52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any VAAR (48 CFR Chapter FEDERAL ACQUISITION REGULATION (48 CFR Chapter 1)) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of Clause)

C.11 VAAR 852.219-75 VA NOTICE OF LIMITATIONS ON SUBCONTRACTING—CERTIFICATE OF COMPLIANCE FOR SERVICES AND CONSTRUCTION (JAN 2023) (DEVIATION)

(a) Pursuant to 38 U.S.C. 8127(l)(2), the offeror certifies that—

(1) If awarded a contract (see FAR 2.101 definition), it will comply with the limitations on subcontracting requirement as provided in the solicitation and the resultant contract, as follows:

(i) ☒ **Services.** In the case of a contract for services (except construction), the contractor will not pay more than 50% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in 852.219–73 or certified VOSBs listed in the SBA certification database as set forth in 852.219–74. Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count towards the 50% subcontract amount that cannot be exceeded. Other direct costs may be excluded to the extent they are not the principal purpose of the acquisition and small business concerns do not provide the service as set forth in 13 CFR 125.6.

(ii) ☐ **General construction.** In the case of a contract for general construction, the contractor will not pay more than 85% of the amount paid by the government to it to firms that are not

certified SDVOSBs listed in the SBA certification database as set forth in 852.219–73 or certified VOSBs listed in the SBA certification database as set forth in 852.219–74. Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count towards the 85% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.

(iii) ☐ *Special trade construction contractors.* In the case of a contract for special trade contractors, the contractor will not pay more than 75% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in 852.219–73 or certified VOSBs listed in the SBA certification database as set forth in 852.219–74. Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count towards the 75% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.

(2) The offeror acknowledges that this certification concerns a matter within the jurisdiction of an Agency of the United States. The offeror further acknowledges that this certification is subject to Title 18, United States Code, Section 1001, and, as such, a false, fictitious, or fraudulent certification may render the offeror subject to criminal, civil, or administrative penalties, including prosecution.

(3) If VA determines that an SDVOSB/ VOSB awarded a contract pursuant to 38 U.S.C. 8127 did not act in good faith, such SDVOSB/VOSB shall be subject to any or all of the following:

- (i) Referral to the VA Suspension and Debarment Committee;
- (ii) A fine under section 16(g)(1) of the Small Business Act (15 U.S.C. 645(g)(1)); and
- (iii) Prosecution for violating 18 U.S.C. 1001.

(b) The offeror represents and understands that by submission of its offer and award of a contract it may be required to provide copies of documents or records to VA that VA may review to determine whether the offeror complied with the limitations on subcontracting requirement specified in the contract. Contracting officers may, at their discretion, require the contractor to demonstrate its compliance with the limitations on subcontracting at any time during performance and upon completion of a contract if the information regarding such compliance is not already available to the contracting officer. Evidence of compliance includes, but is not limited to, invoices, copies of subcontracts, or a list of the value of tasks performed.

(c) The offeror further agrees to cooperate fully and make available any documents or records as may be required to enable VA to determine compliance with the limitations on subcontracting requirement. The offeror understands that failure to provide documents as requested by VA may result in remedial action as the Government deems appropriate.

(d) Offeror completed certification/fill-in required. The formal certification must be completed, signed and returned with the offeror's quotation. The Government will not consider offers for award from offerors that do not provide the certification, and all such responses will be deemed ineligible for evaluation and award.

Certification

I hereby certify that if awarded the contract, [insert name of offeror] will comply with the limitations on subcontracting specified in this clause and in the resultant contract. I further certify that I am authorized to execute this certification on behalf of [insert name of offeror].

Printed Name of Signee: _____

Printed Title of Signee: _____

Signature: _____

Date: _____

Company Name and Address: _____

(End of Clause)

C.12 VAAR 852.232-72 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS (NOV 2018)

(a) *Definitions.* As used in this clause—

(1) *Contract financing payment* has the meaning given in FAR 32.001;

(2) *Designated agency office* means the office designated by the purchase order, agreement, or contract to first receive and review invoices. This office can be contractually designated as the receiving entity. This office may be different from the office issuing the payment;

(3) *Electronic form* means an automated system transmitting information electronically according to the accepted electronic data transmission methods and formats identified in paragraph (c) of this clause. Facsimile, email, and scanned documents are not acceptable electronic forms for submission of payment requests;

(4) *Invoice payment* has the meaning given in FAR 32.001; and

(5) *Payment request* means any request for contract financing payment or invoice payment submitted by the contractor under this contract.

(b) *Electronic payment requests.* Except as provided in paragraph (e) of this clause, the contractor shall submit payment requests in electronic form. Purchases paid with a Government-wide commercial purchase card are considered to be an electronic transaction for purposes of this rule, and therefore no additional electronic invoice submission is required.

(c) *Data transmission.* A contractor must ensure that the data transmission method and format are through one of the following:

(1) VA's Electronic Invoice Presentment and Payment System at the current website address provided in the contract.

(2) Any system that conforms to the X12 electronic data interchange (EDI) formats established by the Accredited Standards Center (ASC) and chartered by the American National Standards Institute (ANSI).

(d) *Invoice requirements.* Invoices shall comply with FAR 32.905.

(e) *Exceptions.* If, based on one of the circumstances in this paragraph (e), the Contracting Officer directs that payment requests be made by mail, the Contractor shall submit payment requests by mail through the United States Postal Service to the designated agency office. Submission of payment requests by mail may be required for—

(1) Awards made to foreign vendors for work performed outside the United States;

(2) Classified contracts or purchases when electronic submission and processing of payment requests could compromise the safeguarding of classified or privacy information;

(3) Contracts awarded by contracting officers in the conduct of emergency operations, such as responses to national emergencies;

(4) Solicitations or contracts in which the designated agency office is a VA entity other than the VA Financial Services Center in Austin, Texas; or

(5) Solicitations or contracts in which the VA designated agency office does not have electronic invoicing capability as described above.

(End of Clause)

C.13 VAAR 852.237-70 INDEMNIFICATION AND MEDICAL LIABILITY INSURANCE (OCT 2019)

(a) It is expressly agreed and understood that this is a non-personal services contract, as defined in Federal Acquisition Regulation (FAR) 37.101, under which the professional services rendered by the Contractor or its health-care providers are rendered in its capacity as an independent contractor. The Government may evaluate the quality of professional and administrative services provided but retains no control over professional aspects of the services rendered including, by example, the Contractor's or its health-care providers' professional medical judgment, diagnosis, or specific medical treatments. The Contractor and its healthcare providers shall be liable for their liability-producing acts or omissions. The Contractor shall maintain or require all health-care providers performing under this contract to maintain, during the term of this contract, professional liability insurance issued by a responsible insurance carrier of not less than the following amount(s) per specialty per occurrence:

* _____. However, if the Contractor is an entity or a subdivision of a State that either provides for self-insurance or limits the liability or the amount of insurance purchased by State entities, then the insurance requirement of this contract shall be fulfilled by incorporating the provisions of the applicable State law.

* Amounts are listed below:

(b) An apparently successful offeror, upon request of the Contracting Officer, shall, prior to contract award, furnish evidence of the insurability of the offeror and/or of all healthcare providers who will perform under this contract. The submission shall provide evidence of insurability concerning the medical liability insurance required by paragraph (a) of this clause or the provisions of State law as to self-insurance, or limitations on liability or insurance.

(c) The Contractor shall, prior to commencement of services under the contract, provide to the Contracting Officer Certificates of Insurance or insurance policies evidencing the required insurance coverage and an endorsement stating that any cancellation or material change adversely affecting the Government's interest shall not be effective until 30 days after the insurer or the Contractor gives written notice to the Contracting Officer. Certificates or policies shall be provided for the Contractor and/or each health-care provider who will perform under this contract.

(d) The Contractor shall notify the Contracting Officer within 5 days of becoming aware of a change in insurance providers during the performance period of this contract for all health-care providers performing under this contract. The notification shall provide evidence that the Contractor and/or health-care providers will meet all the requirements of this clause, including those concerning liability insurance and endorsements. These requirements may be met either under the new policy, or a combination of old and new policies, if applicable.

(e) The Contractor shall insert the substance of this clause, including this paragraph (e), in all subcontracts for healthcare services under this contract. The Contractor shall be responsible for compliance by any subcontractor or lower-tier subcontractor with the provisions set forth in

paragraph (a) of this clause. At least 5 days before the commencement of work by any subcontractor, the Contractor shall furnish to the Contracting Officer evidence of such insurance.

\$1,000,000.00 per occurrence

\$3,000,000.00 aggregate

(End of Clause)

C.14 VAAR 852.237-75 KEY PERSONNEL (OCT 2019)

The key personnel specified in this contract are considered to be essential to work performance. At least 30 days prior to the Contractor voluntarily diverting any of the specified individuals to other programs or contracts the Contractor shall notify the Contracting Officer and shall submit a justification for the diversion or replacement and a request to replace the individual. The request must identify the proposed replacement and provide an explanation of how the replacement's skills, experience, and credentials meet or exceed the requirements of the contract. If the employee of the Contractor is terminated for cause or separates from the contractor voluntarily with less than thirty days notice, the Contractor shall provide the maximum notice practicable under the circumstances. The Contractor shall not divert, replace, or announce any such change to key personnel without the written consent of the Contracting Officer. The contract will be modified to add or delete key personnel as necessary to reflect the agreement of the parties.

(End of Clause)

C.15 VAAR 852.242-71 ADMINISTRATIVE CONTRACTING OFFICER (OCT 2020)

The Contracting Officer reserves the right to designate an Administrative Contracting Officer (ACO) for the purpose of performing certain tasks/duties in the administration of the contract. Such designation will be in writing through an ACO Letter of Delegation and will identify the responsibilities and limitations of the ACO. A copy of the ACO Letter of Delegation will be furnished to the Contractor.

(End of Clause)

SECTION D - CONTRACT DOCUMENTS, EXHIBITS, OR ATTACHMENTS

See attached document: D 1 - Conflict of Interest.

See attached document: D 2 - Certification of Immigration and Nationality Act.

See attached document: D 3 - Contractor Rules of Behavior.

See attached document: D 4 - QASP.

See attached document: D 5 - Past Performance Questionnaire -SJ.

SECTION E - SOLICITATION PROVISIONS

E.1 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (DEVIATION OCT 2025)

(a) *North American Industry Classification System (NAICS) code and small business size standard.* The NAICS code(s) and small business size standard(s) for this acquisition appear elsewhere in the solicitation. However, the small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition—

- (1) Is set aside for small business and has a value above the simplified acquisition threshold;
- (2) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or
- (3) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b) *Submission of offers.* Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. Offers may be submitted on the SF 1449, letterhead stationery, or as otherwise specified in the solicitation. As a minimum, offers must show—

- (1) The solicitation number;
- (2) The time specified in the solicitation for receipt of offers;
- (3) The name, address, and telephone number of the offeror;
- (4) A technical description of the items being offered in sufficient detail to evaluate compliance with the requirements in the solicitation. This may include product literature, or other documents, if necessary;
- (5) Terms of any express warranty;
- (6) Price and any discount terms;
- (7) "Remit to" address, if different than mailing address;
- (8) A completed copy of the representations and certifications at Federal Acquisition Regulation (FAR) 52.212-3 (see FAR 52.212-3(b) for those representations and certifications that the offeror shall complete electronically);
- (9) Acknowledgment of Solicitation Amendments;
- (10) Past performance information, when included as an evaluation factor, to include recent and relevant contracts for the same or similar items and other references (including contract numbers, points of contact with telephone numbers and other relevant information); and
- (11) If the offer is not submitted on the SF 1449, include a statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation. Offers that fail to

furnish required representations or information, or reject the terms and conditions of the solicitation may be excluded from consideration.

(c) *Period for acceptance of offers.* The offeror agrees to hold the prices in its offer firm for 30 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(d) *Product samples.* When required by the solicitation, product samples shall be submitted at or prior to the time specified for receipt of offers. Unless otherwise specified in this solicitation, these samples shall be submitted at no expense to the Government, and returned at the sender's request and expense, unless they are destroyed during preaward testing.

(e) *Multiple offers.* Offerors are encouraged to submit multiple offers presenting alternative terms and conditions, including alternative line items (provided that the alternative line items are consistent with FAR subpart 4.10), or alternative commercial products or commercial services for satisfying the requirements of this solicitation. Each offer submitted will be evaluated separately.

(f) Late submissions, modifications, revisions, and withdrawals of offers.

(1) Offerors are responsible for submitting offers, and any modifications, revisions, or withdrawals, so as to reach the Government office designated in the solicitation by the time specified in the solicitation. If no time is specified in the solicitation, the time for receipt is 4:30 p.m., local time, for the designated Government office on the date that offers or revisions are due.

(2)(i) Any offer, modification, revision, or withdrawal of an offer received at the Government office designated in the solicitation after the exact time specified for receipt of offers is "late" and will not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition; and—

(A) If it was transmitted through an electronic commerce method authorized by the solicitation, it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of offers; or

(B) There is acceptable evidence to establish that it was received at the Government installation designated for receipt of offers and was under the Government's control prior to the time set for receipt of offers; or

(C) If this solicitation is a request for quotes, it was the only quote received.

(ii) However, a late modification of an otherwise successful offer, that makes its terms more favorable to the Government, will be considered at any time it is received and may be accepted.

(3) Acceptable evidence to establish the time of receipt at the Government installation includes the time/date stamp of that installation on the offer wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of Government personnel.

(4) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(5) Offers may be withdrawn by written notice received at any time before the exact time set for receipt of offers. Oral offers in response to oral solicitations may be withdrawn orally. If the solicitation authorizes facsimile offers, offers may be withdrawn via facsimile received at any time before the exact time set for receipt of offers, subject to the conditions specified in the solicitation concerning facsimile offers. An offer may be withdrawn in person by an offeror or its authorized representative if, before the exact time set for receipt of offers, the identity of the person requesting withdrawal is established and the person signs a receipt for the offer.

(g) *Contract award (not applicable to Invitation for Bids).* The Government intends to evaluate offers and award a contract without discussions with offerors. Therefore, the offeror's initial offer should contain the offeror's best terms from a price and technical standpoint. However, the Government reserves the right to conduct discussions if later determined by the Contracting Officer to be necessary. The Government may reject any or all offers if such action is in the public interest; accept other than the lowest offer; and waive informalities and minor irregularities in offers received.

(h) *Multiple awards.* The Government may accept any item or group of items of an offer, unless the offeror qualifies the offer by specific limitations. Unless otherwise provided in the Schedule, offers may not be submitted for quantities less than those specified. The Government reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit prices offered, unless the offeror specifies otherwise in the offer.

(i) Availability of requirements documents cited in the solicitation.

(1)(i) The GSA Index of Federal Specifications, Standards and Commercial Item Descriptions, FPMR Part 101-29, and copies of specifications, standards, and product descriptions can be downloaded from the ASSIST website at <https://assist.dla.mil>.

(ii) If the General Services Administration, Department of Agriculture, or Department of Veterans Affairs issued this solicitation, a copy of specifications, standards, and commercial item descriptions cited in this solicitation may be obtained from the address in paragraph (i)(1)(i) of this provision.

(2) Most unclassified Defense specifications and standards may be downloaded from the ASSIST website at <https://assist.dla.mil>.

(3) Defense documents not available from the ASSIST website may be requested from the Defense Standardization Program Office by-

(i) Using the ASSIST feedback module (<https://assist.dla.mil/feedback>); or

(ii) Contacting the Defense Standardization Program Office by telephone at 571-767-6688 or email at assisthelp@dlamail.

(4) Nongovernment (voluntary) standards must be obtained from the organization responsible for their preparation, publication, or maintenance.

(j) *Unique entity identifier.* (Applies to all offers that exceed the micro-purchase threshold, and offers at or below the micro-purchase threshold if the solicitation requires the Contractor to be registered in the System for Award Management (SAM).) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation "Unique Entity Identifier" followed by the unique entity identifier that identifies the Offeror's name and address. The Offeror also shall enter its Electronic Funds Transfer (EFT) indicator, if applicable. The EFT indicator is a four-character suffix to the unique entity identifier. The suffix is assigned at the discretion of the Offeror to establish additional SAM records for identifying alternative EFT accounts (see FAR subpart 32.11) for the same entity. If the Offeror does not have a unique

entity identifier, it should contact the entity designated at www.sam.gov for unique entity identifier establishment directly to obtain one. The Offeror should indicate that it is an offeror for a Government contract when contacting the entity designated at www.sam.gov for establishing the unique entity identifier.

(k) [Reserved]

(l) *Debriefing*. If a post-award debriefing is given to requesting offerors, the Government shall disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed offeror's offer.

(2) The overall evaluated cost or price and technical rating of the successful and the debriefed offeror and past performance information on the debriefed offeror.

(3) The overall ranking of all offerors, when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award;

(5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful offeror.

(6) Reasonable responses to relevant questions posed by the debriefed offeror as to whether source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities were followed by the agency.

(End of Provision)

ADDENDUM to FAR 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

Provisions that are incorporated by reference (by Citation Number, Title, and Date), have the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

The following provisions are incorporated into 52.212-1 as an addendum to this solicitation:

INSTRUCTIONS TO OFFERORS

To provide a basis for sound evaluation by the government, contractors shall submit a complete quote. The information provided shall be concise, factual, and complete. Quotes will be considered only from contractors that are regularly established in the business and in the judgment of the government, are deemed financially responsible and able to show evidence of experience and have submitted the complete documentation requested.

All questions shall be submitted in writing no later than Wednesday, Apr 23, 2026, at 12:00 PM Eastern Standard Time (EST). Questions shall be submitted via email to Fernando G. Defillo, Contracting Officer at the following email address: Fernando.defillo@va.gov. Answers to questions will be addressed via an amendment to the solicitation and will be posted to SAM.gov.

Contractors are hereby advised that any imposed terms and conditions which deviate from the Government's material terms and conditions established in the solicitation may render their quotes unacceptable and ineligible for award. Quotes shall be submitted electronically. It is the responsibility of the contractor to follow up to ensure that the quote was received no later than the due time of the Request for Quote (RFQ).

Contractors are cautioned to follow instructions fully and carefully, as the Government reserves the right to make an award based on initial quotes received, without discussions. Therefore, each initial offer should contain the contractor's best terms from a price and technical standpoint.

All quotes shall be received by Network Contracting Office 8 at the email address listed above no later than the time and date in block 8 of the SF1449.

QUOTE SUBMISSION INSTRUCTIONS

FORMAT

The contractor's quote shall be submitted electronically by the date and time indicated in the RFQ. The contractor quote shall consist of four (4) separate volumes: General, Technical Capability, Past Performance, and Price.

Each volume shall be clearly identified at the top of the page. All pages of each volume shall be appropriately numbered and identified by the complete company name, date, and RFQ number in the header and/or footer.

VOLUMES

Volume I – General.

1. Complete blocks 12, 17a, and 30a, b, and c of the SF1449. In doing so, the contractor agrees to the contract terms and conditions as written in the RFQ, with attachments.
2. Section B.1a, Continuation of SF1449 Blocks, Contract Administration Data, Fill in: B.1a. Contractor Information; and section five (5) Acknowledgment of Amendments, if applicable.
3. Complete the required attachments as identified in Section D, attachments one (D.1) through five (D.5) and return all applicable documents.
4. Completed and signed VAAR 852.219-75

Volume 2 – Technical Capability.

Technical Subfactor A: Qualifications & Experience of Candidate(s): For each candidate employed by the organization, the following documentation is required for submission:

1. **Experience:** A minimum of six months of hands-on experience in phlebotomy, performing blood collection and handling specimens in a clinical or healthcare setting.
2. **CPR Certification:** Current certification in Cardiopulmonary Resuscitation (CPR), especially for handling emergencies during blood collection.
3. **Technical Skills:** Proficiency in performing venipuncture and capillary blood collection techniques.
4. **Laboratory Procedures:** Experience handling blood specimens, following safety protocols (e.g., infection control, specimen labeling).
5. **Knowledge of Safety Standards:** Familiarity with safety guidelines for bloodborne pathogens and sharps safety.

Documents to Demonstrate Experience:

1. **Reference Letters or Employment Certificates:**
 - Letters from previous employers or supervisors detailing the duration of employment, tasks performed, and skills acquired in the position.
 - Employment certificates showing the position held, dates of employment, and a description of the duties performed.
2. **Updated Curriculum Vitae (CV):**
 - A detailed CV that outlines the phlebotomist's work experience, specifically highlighting the six months of phlebotomy-related duties
 - A detailed CV that outlines the phlebotomist's work experience, specifically highlighting the six months of phlebotomy-related duties.
3. **Training or On-the-Job Experience Documentation:**
 - Documentation from previous employers or training providers verifying on-the-job training or informal training in phlebotomy.
4. **CRP Certification:**
 - A copy of the valid certification required for emergencies during a blood collection.

5. Performance Evaluation or Supervisor Reports:

- Performance evaluations or reports from supervisors that provide evidence of the phlebotomist's skills, reliability, and experience in the role.

6. Safety Compliance Records:

- Documents that demonstrate familiarity with safety standards.

Technical Subfactor B: Staffing Plan of Organization: The Government will evaluate this subfactor to determine the extend the contractor's ability to provide staffing and contingency plan. Significant consideration will be given to contractors who demonstrate experience with VA's unique processes (VETPRO, Background and e-QIP).

1. Provide a staffing plan to demonstrate the ability to adequately cover the following contractual requirements:

- a. Contractor shall discuss the ability to provide emergency substitutions: for temporary substitutions where the key person shall not be reporting to work for three (3) consecutive workdays or more, the Contractor shall provide a qualified replacement for the key person.
- b. Contractor shall describe the Contingency Plan: Because continuity of care is an essential part of VACHS medical services, The Contractor shall have a contingency plan in place to be utilized if the phlebotomist(s) leaves Contractor's employment or is unable to continue performance in accordance with the terms and conditions of the resulting task mechanism in place to hire qualified candidates and the contingency plan in place should personnel leave or are unable to continue performance under the contract.

Volume 3 – Past Performance.

Provide a minimum of three (3) references of responsible individuals who would have firsthand knowledge of the candidates who may be assigned as part of this contract.

1. Company Name/Division Name
2. Product/Service
3. Contracting Agency/Customer
4. Contract Number
5. Contract Dollar Value
6. Period of Performance
7. Name, address, and telephone for the Assessor

Provide a maximum two (2) Past Performance Questionnaires, attachment five (D.5), which shall be completed by the Contractor's reference(s) and not by any contractor employee. The questionnaires shall be returned by the Assessor directly to the

Contracting Officer via email to Fernando.defillo@va.gov no later than the time and date on block 8 of the SF1449.

Volume 4 – Price.

Insert the quoted unit cost and total annual cost in Section B.2, Price Schedule, for each contract line-item numbers (LINs) 0001 and 0002, for each for the Base Year and each Option Year. The total annual cost for the base period shall equal the unit cost multiplied by quantity. The annual quantity required for each period of performance is listed in Section B.2 Price Schedule.

52.212-1(c) is hereby tailored to extend the period of acceptance of quotations from 30 days to 120 days.

Provisions that are incorporated by reference (by Citation Number, Title, and Date), have the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

The following provisions are incorporated into 52.212-1 as an addendum to this solicitation:

E.2 52.212-2 EVALUATION—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (DEVIATION OCT 2025)

Evaluation—Commercial Products and Commercial Services (Deviation Date)

a) Basis for Award: The Government will award a contract to the responsible Small Business contractor whose quotation conforming to the solicitation will be most advantageous to the Government, price and other factors considered. In determining which quote provides the best value to the Government, non-price (technical) evaluation factors are significantly more important than evaluated price. The Government may perform a comparative evaluation (comparing offers to each other) to select the contractor that is best suited and provides the best value, considering the evaluation factors in this solicitation.

b) Contractors must be currently registered in SAM and verified in the Small Business Dynamic Search at the time of submission of quotation and at the time of award. Contractor must be a certified small business at the time of submission and at the time of award to be considered for award.

c) The Government is not obligated to request any additional information from a contractor who does not provide sufficiently detailed information of which a precise evaluation can be made of a contractor's quote. Failure to submit complete information in the manner as instructed may be grounds to consider the quote unacceptable/ineligible and exclude the contractor from further considerations. It is, therefore, in the contractor's best interest to submit ALL required documentation to the fullest degree possible. If a contractor cannot provide all information required by the evaluation factors, a statement documenting each omission shall be included in the contractor's quotation addressing the omission(s).

d) By submission of its quotation, the contractor agrees to all solicitation requirements, including terms and conditions, representations and certifications, and technical

requirements, in addition to those identified as evaluation factors. Failure to meet a requirement may result in being considered unacceptable and/or non-responsive.

e) Contractors should address in detail their Technical Capabilities by describing their approach to each factor and subfactor. All factors and subfactors will be considered based solely on the quotation provided, to the extent to which the quotation demonstrates a clear understanding of the requirements, and the contractor's ability to meet those requirements.

f) The following factors will be used to evaluate Quotes:

FACTOR ONE (1): Technical Capability:

Subfactor A: Qualifications and Experience of Candidates: The Government will evaluate this subfactor to determine the extent of the proposed candidate's qualifications and experience to perform the required services.

Subfactor B: Company Staffing Plan of Organization:

Technical Subfactor B: Staffing Plan of Organization: The Government will evaluate this subfactor to determine the extend the contractor's ability to provide staffing and contingency plan. Significant consideration will be given to contractors who demonstrate experience with VA's unique processes (VETPRO, Background and e-QIP).

Does the contractor provide a staffing plan to demonstrate the ability to adequately cover the following contractual requirements:

- a. The ability to provide emergency substitutions.
- b. The Contingency Plan.

FACTOR TWO (2): Past Performance

The information presented by the vendor, together with information from other sources available to the Government, will be the basis for evaluation under this factor. As part of this evaluation, VA will consider the relevancy of the prior contract's information submitted, to include the size and scope. The Government will consider vendor's record for delivery, quality, and past or present malpractice judgments, proposed major subcontractors as it relates to the probability of successfully performing the solicitation requirements. VA may also use information available in its own files; from electronic databases such as the Contractor Performance Assessment Reporting System (CPARS) or from any other source it deems appropriate. While the Government may elect to consider data obtained from other sources, the burden of providing current and complete past performance information rests with the vendor. Vendors with more relevant and recent experience to this solicitation's requirement will be rated more highly in the Past Performance evaluation factor.

Contractors who provide references for work experience from Department of Veterans Affairs Medical Centers will receive a more favorable rating than those without Department of Veterans Affairs experience. In the case of a contractor without a record of relevant past performance or for whom information on past performance is not

available, the contractor will not be evaluated favorably or unfavorably on past performance.

FACTOR THREE (3): Price

Except when it is determined in accordance with FAR Overhaul 17.206 (b) not to be in the Government's best interest, the Government will evaluate quotations for award purposes by adding the total price for all options to the total price for the basic requirement. The Government will further evaluate its option to extend services, FAR Overhaul Clause 52.217-8, by adding one-half of the Offeror's final option year price to establish the 'total evaluated price'. Evaluation of options will not obligate the Government to exercise the option(s).

(End of Provision)

E.3 52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)

(a) *Definitions.* As used in this provision—

"Administrative proceeding" means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

"Federal contracts and grants with total value greater than \$10,000,000" means—

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

"Principal" means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror [] has [] does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

- (i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in—

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of Provision)

E.4 52.216-1 TYPE OF CONTRACT (NOV 2025) (DEVIATION)

The Government contemplates award of a Fixed-Price, Indefinite Quantity contract resulting from this solicitation.

(End of Provision)

E.5 52.233-2 SERVICE OF PROTEST (SEP 2006)

Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from:

Network Contracting Office 8

Fernando.defillo@va.gov

Hand-Carried Address:

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of Provision)

E.6 52.240-90 SECURITY PROHIBITIONS AND EXCLUSIONS REPRESENTATIONS AND CERTIFICATIONS (NOV 2025) (DEVIATION)

(a) *Definitions.* As used in this provision—

Backhaul, covered article, covered telecommunications equipment or services, critical technology, FASCSA order, Intelligence community, interconnection arrangements, national security system, roaming, sensitive compartmented information, sensitive compartmented information system, source, and substantial or essential component have the meanings provided in the clause 52.240-91, Security Prohibitions and Exclusions.

Business operations means engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce.

Marginalized populations of Sudan means—

(1) Adversely affected groups in regions authorized to receive assistance under section 8(c) of the Darfur Peace and Accountability Act (Pub. L. 109-344) (50 U.S.C. 1701 note); and

(2) Marginalized areas in Northern Sudan described in section 4(9) of such Act.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted under specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended.

Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

(b) *Procedures.*

(1) *Covered telecommunications and video surveillance.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”

(2) *FASCSA Orders.*

(i) The Offeror shall search in SAM for the phrase “FASCSA order” for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (e) of FAR 52.240-91, Security Prohibitions and Exclusions.

(ii) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM but are effective and apply to the solicitation and resultant contract (see FAR 40.204-1(c)(2)).

(iii) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(c) *Covered telecommunications equipment or services representations.* By submission of its offer, the Offeror represents that, after conducting a reasonable inquiry (that looks at any information in the Offeror’s possession but does not need to include an internal or third-party audit)—

(1) It will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation, except as waived by the solicitation, or as disclosed in paragraph (g); and

(2) It does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services, except as waived by the solicitation, or as disclosed in paragraph (g).

(d) *FASCSA Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (g). A reasonable inquiry will look at any information in the offeror’s possession but does not need to include an internal or third-party audit.

(e) *Sudan certification.* By submission of its offer, the offeror certifies, after conducting a reasonable inquiry (that looks at any information in the offeror’s possession but does not need to include an internal or third-party audit), that the offeror does not conduct any restricted business operations in Sudan.

(f) *Iran Representation and Certifications.*

(1) Except as provided in paragraph (f)(2) of this provision or if a waiver has been granted in accordance with FAR 40.203-3, the offeror, after conducting a reasonable inquiry (that looks at any information in the offeror’s possession but does not need to include an internal or third-party audit), by submission of its offer—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person (as defined at section 15 of the Iran Sanctions Act of 1996, Pub. L. 104-172, 50 U.S.C. 1701 note) owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Act. These sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran’s ability to acquire or develop certain weapons or technologies; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds \$15,000 with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>)

(2) Exception for trade agreements. The representation and certification requirements of paragraph (f)(1) of this provision do not apply if—

(i) This solicitation includes a trade agreements notice or certification (e.g., 52.225-6, Trade Agreements Certificate); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products or designated country construction material.

(iii) The offeror shall email questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(g) *Disclosure.*

(1) If the Offeror is not able to represent compliance with the prohibitions in paragraphs (c) or (d), then the Offeror shall disclose within 72 hours to the contracting office identified in paragraph (g)(2) the following information for each product or service not compliant:

(i) Contract number and order number, if applicable;

(ii) Identification of whether this disclosure relates to paragraph (c) on covered telecommunication equipment or services, or to paragraph (d) on FASCSA orders;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the offeror would like the Government to consider a waiver);

(vii) Whether alternative products or services are available that would be compliant with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions undertaken or recommended.

(2) If a disclosure is required to be submitted to a contracting office, the offeror shall submit the disclosure as follows:

(i) If a Department of Defense contracting office, the offeror shall submit the disclosure to the website at <https://dibnet.dod.mil>.

(ii) For all other contracting offices, the Offeror shall submit the disclosure to the Contracting Officer.

(3) If the disclosure provided does not contain any of the information required by paragraph (1), and the Offeror later discovers new information that is required by paragraph (1), then the Offeror shall submit a subsequent disclosure within 72 hours of discovering the new information.

(h) *Executive agency review of disclosures.* The Contracting Officer will review disclosures provided in paragraph (g) to determine if any applicable waiver may be sought. The Contracting Officer may choose not to pursue a waiver and may instead make an award to an Offeror that does not require a waiver.

(End of Provision)

E.7 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>

<https://www.va.gov/oal/library/vaar/>

(End of Provision)

<u>FAR Number</u>	<u>Title</u>	<u>Date</u>
52.203-11	CERTIFICATION AND DISCLOSURE REGARDING PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS	SEP 2024
52.203-18	PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS—REPRESENTATION	JAN 2017
52.204-7	SYSTEM FOR AWARD MANAGEMENT—REGISTRATION (DEVIATION)	NOV 2025
52.209-12	CERTIFICATION REGARDING TAX MATTERS	OCT 2025
52.229-11	TAX ON CERTAIN FOREIGN PROCUREMENTS—NOTICE AND REPRESENTATION	JUN 2020
852.209-70	ORGANIZATIONAL CONFLICTS OF INTEREST	OCT 2020
852.215-72	NOTICE OF INTENT TO RE-SOLICIT	OCT 2019

852.233-70	PROTEST CONTENT/ALTERNATIVE DISPUTE RESOLUTION	OCT 2018
852.233-71	ALTERNATE PROTEST PROCEDURE (MAY 2010) NOTE	MAY 2010
852.233-71	ALTERNATE PROTEST PROCEDURE	OCT 2018
852.239-75	INFORMATION AND COMMUNICATION TECHNOLOGY ACCESSIBILITY NOTICE	FEB 2023
852.273-70	LATE OFFERS	NOV 2021
(End of Addendum to 52.212-1)		

E.8 52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of “(DEVIATION)” after the date of the provision.

(b) The use in this solicitation of any VAAR Acquisition Regulation (48 CFR Chapter FEDERAL ACQUISITION REGULATION (48 CFR Chapter 1)) provision with an authorized deviation is indicated by the addition of “(DEVIATION)” after the name of the regulation.

(End of Provision)